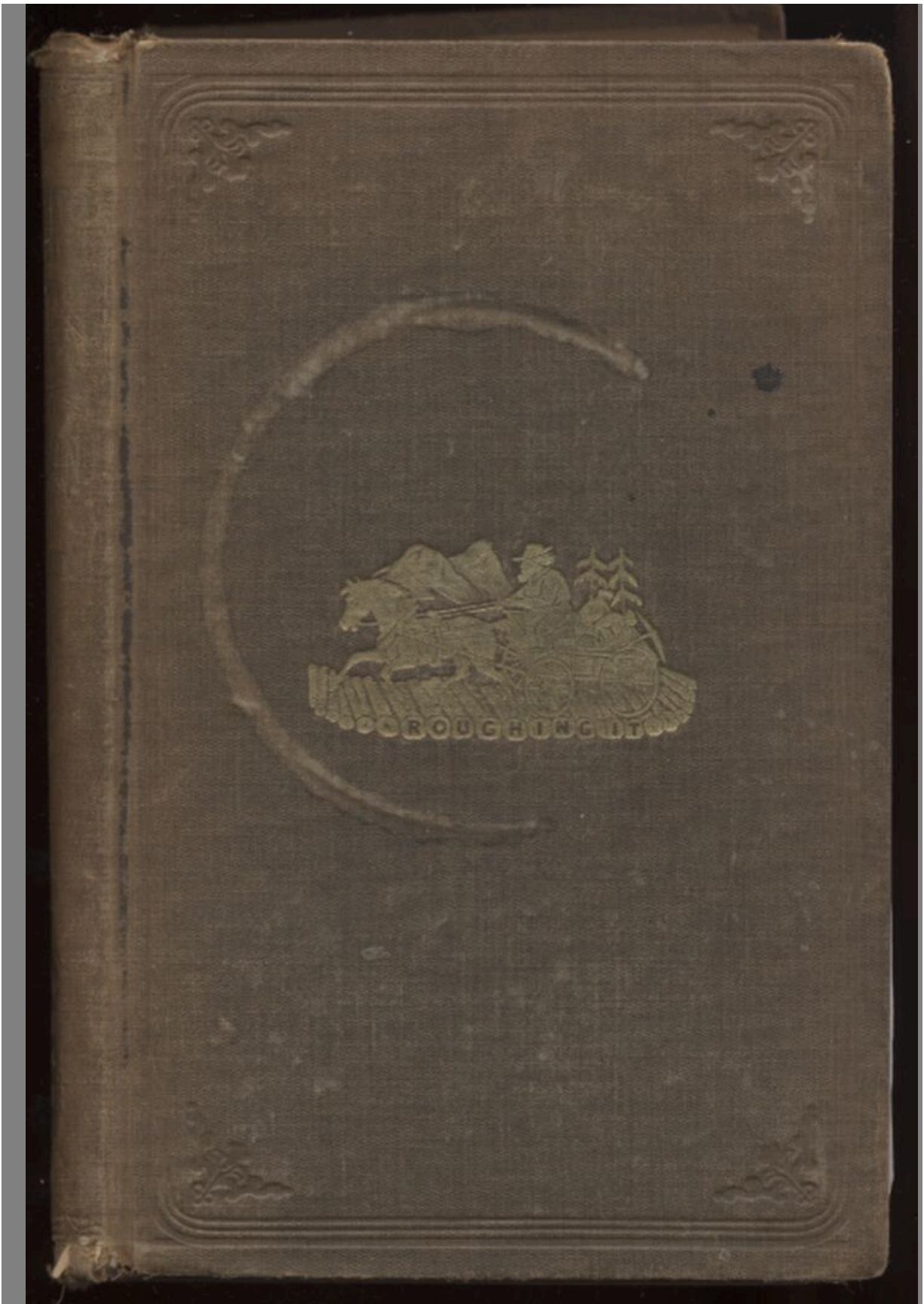






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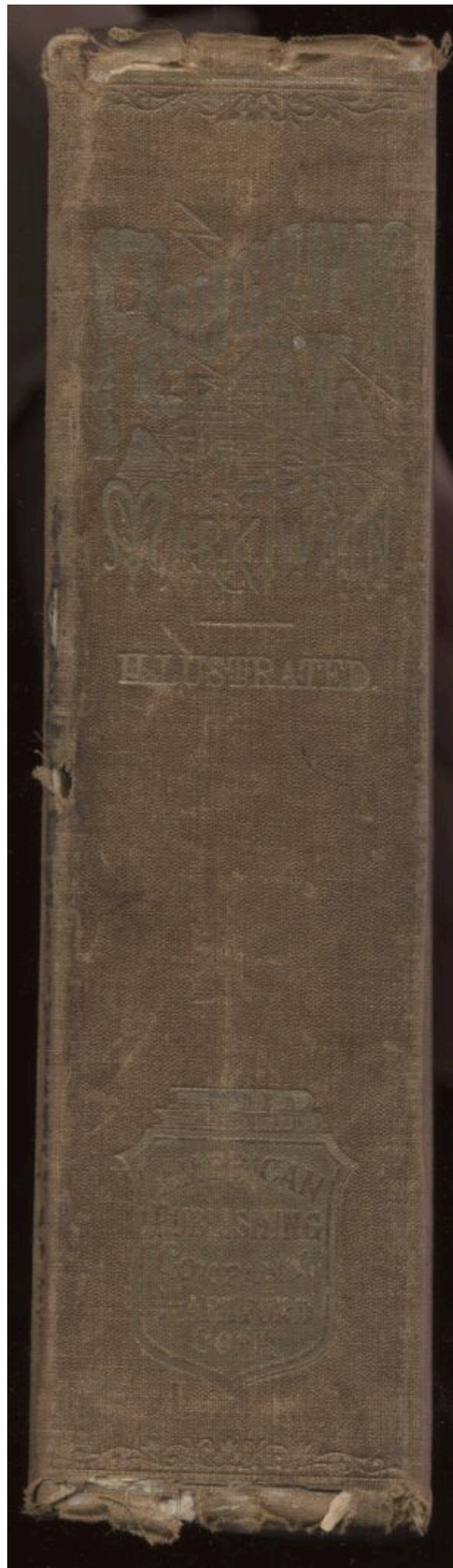
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ROUGHING IT, Part 5

By Mark Twain





THE MINER'S DREAM.

ROUGHING IT

BY

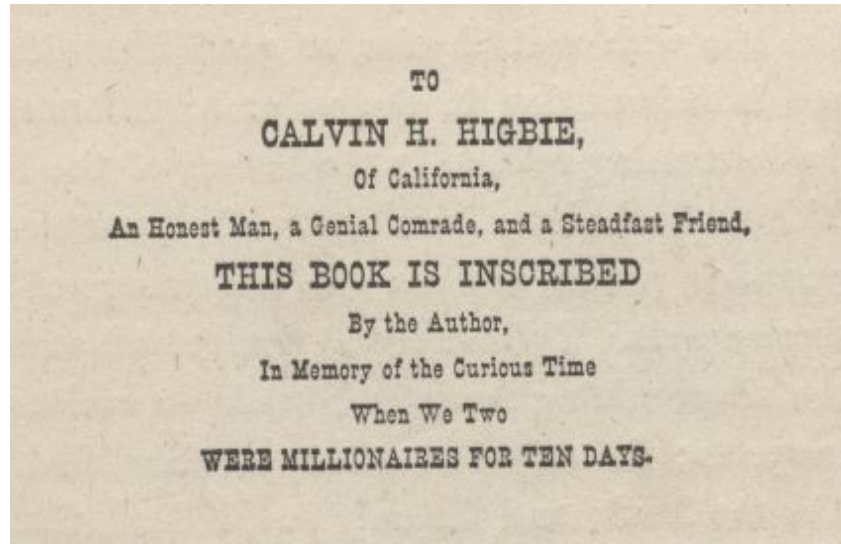
MARK TWAIN.
(SAMUEL L. CLEMENS.)

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1872.



PREFATORY.

This book is merely a personal narrative, and not a pretentious history or a philosophical dissertation. It is a record of several years of variegated vagabondizing, and its object is rather to help the resting reader while away an idle hour than afflict him with metaphysics, or goad him with science. Still, there is information in the volume; information concerning an interesting episode in the history of the Far West, about which no books have been written by persons who were on the ground in person, and saw the happenings of the time with their own eyes. I allude to the rise, growth and culmination of the silver-mining fever in Nevada—a curious episode, in some respects; the only one, of its peculiar kind, that has occurred in the land; and the only one, indeed, that is likely to occur in it.

Yes, take it all around, there is quite a good deal of information in the book. I regret this very much; but really it could not be helped: information appears to stew out of me naturally, like the precious ottar of roses out of the otter. Sometimes it has seemed to me that I would give worlds if I could retain my facts; but it cannot be. The more I calk up the sources, and the tighter I get, the more I leak wisdom. Therefore, I can only claim indulgence at the hands of the reader, not justification.

THE AUTHOR.

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CHAPTER XLI.

Captain Nye was very ill indeed, with spasmodic rheumatism. But the old gentleman was himself—which is to say, he was kind-hearted and agreeable when comfortable, but a singularly violent wild-cat when things did not go well. He would be smiling along pleasantly enough, when a sudden spasm of his disease would take him and he would go out of his smile into a perfect fury. He would groan and wail and howl with the anguish, and fill up the odd chinks with the most elaborate profanity that strong convictions and a fine fancy could contrive. With fair opportunity he could swear very well and handle his adjectives with considerable judgment; but when the spasm was on him it was painful to listen to him, he was so awkward. However, I had seen him nurse a sick man himself and put up patiently with the inconveniences of the situation, and consequently I was willing that he should have full license now that his own turn had come. He could not disturb me, with all his raving and ranting, for my mind had work on hand, and it labored on diligently, night and day, whether my hands were idle or employed. I was altering and amending the plans for my house, and thinking over the propriety of having the billiard-room in the attic, instead of on the same floor with the dining-room; also, I was trying to decide between green and blue for the upholstery of the drawing-room, for, although my preference was blue I feared it was a color that would be too easily damaged by dust and sunlight; likewise while I was content to put the coachman in a modest livery, I was uncertain about a footman—I needed one, and was even resolved to have one, but wished he could properly appear and perform his functions out of livery, for I somewhat dreaded so much show; and yet, inasmuch as my late grandfather had had a coachman and such things, but no liveries, I felt rather drawn to beat him;—or beat his ghost, at any rate; I was also systematizing the European trip, and managed to get it all laid out, as to route and length of time to be devoted to it—everything, with one exception—namely, whether to cross the desert from Cairo to Jerusalem per camel, or go by sea to Beirut, and thence down through the country per caravan. Meantime I was writing to the friends at home every day, instructing them concerning all my plans and intentions, and directing them to look up a

handsome homestead for my mother and agree upon a price for it against my coming, and also directing them to sell my share of the Tennessee land and tender the proceeds to the widows' and orphans' fund of the typographical union of which I had long been a member in good standing. [This Tennessee land had been in the possession of the family many years, and promised to confer high fortune upon us some day; it still promises it, but in a less violent way.]



When I had been nursing the Captain nine days he was somewhat better, but very feeble. During the afternoon we lifted him into a chair and gave him an alcoholic vapor bath, and then set about putting him on the bed again. We had to be exceedingly careful, for the least jar produced pain. Gardiner had his shoulders and I his legs; in an unfortunate moment I stumbled and the patient fell heavily on the bed in an agony of torture. I never heard a man

swear so in my life. He raved like a maniac, and tried to snatch a revolver from the table—but I got it. He ordered me out of the house, and swore a world of oaths that he would kill me wherever he caught me when he got on his feet again. It was simply a passing fury, and meant nothing. I knew he would forget it in an hour, and maybe be sorry for it, too; but it angered me a little, at the moment. So much so, indeed, that I determined to go back to Esmeralda. I thought he was able to get along alone, now, since he was on the war path. I took supper, and as soon as the moon rose, began my nine-mile journey, on foot.

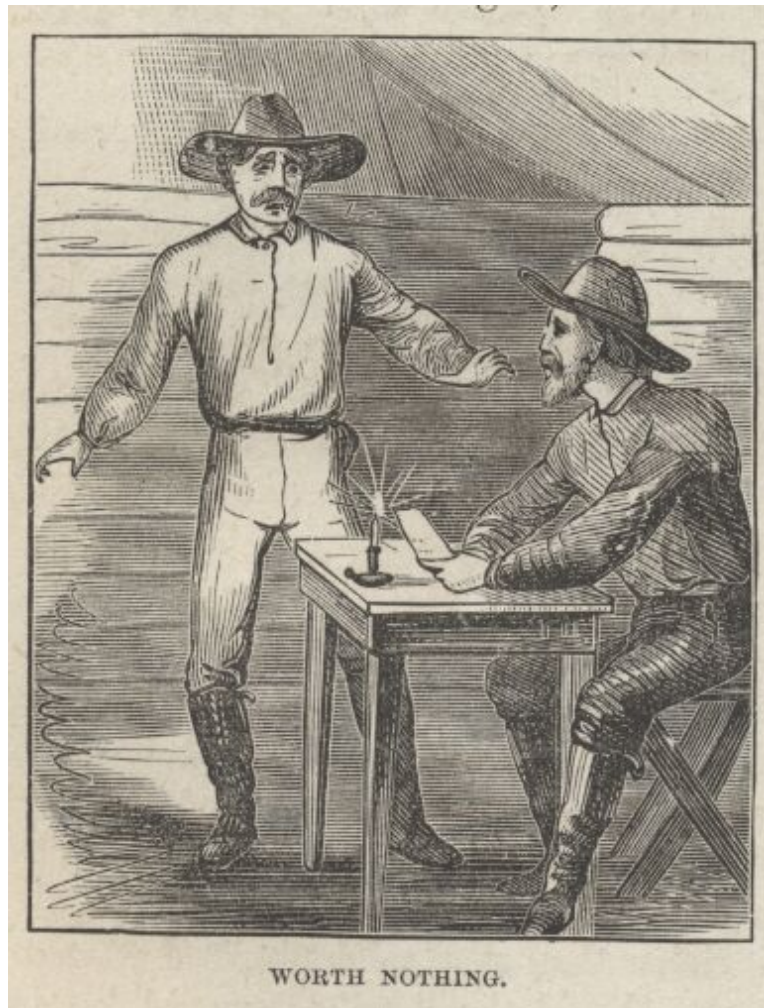
Even millionaires needed no horses, in those days, for a mere nine-mile jaunt without baggage.

As I "raised the hill" overlooking the town, it lacked fifteen minutes of twelve. I glanced at the hill over beyond the canyon, and in the bright moonlight saw what appeared to be about half the population of the village massed on and around the Wide West croppings. My heart gave an exulting bound, and I said to myself, "They have made a new strike to-night—and struck it richer than ever, no doubt." I started over there, but gave it up. I said the "strick" would keep, and I had climbed hill enough for one night. I went on down through the town, and as I was passing a little German bakery, a woman ran out and begged me to come in and help her. She said her husband had a fit. I went in, and judged she was right—he appeared to have a hundred of them, compressed into one. Two Germans were there, trying to hold him, and not making much of a success of it. I ran up the street half a block or so and routed out a sleeping doctor, brought him down half dressed, and we four wrestled with the maniac, and doctored, drenched and bled him, for more than an hour, and the poor German woman did the crying. He grew quiet, now, and the doctor and I withdrew and left him to his friends.

It was a little after one o'clock. As I entered the cabin door, tired but jolly, the dingy light of a tallow candle revealed Higbie, sitting by the pine table gazing stupidly at my note, which he held in his fingers, and looking pale, old, and haggard. I halted, and looked at him. He looked at me, stolidly. I said:

"Higbie, what—what is it?"

"We're ruined—we didn't do the work—THE BLIND LEAD'S RELOCATED!"



It was enough. I sat down sick, grieved—broken-hearted, indeed. A minute before, I was rich and brimful of vanity; I was a pauper now, and very meek. We sat still an hour, busy with thought, busy with vain and useless self-upbraidings, busy with "Why didn't I do this, and why didn't I do that," but neither spoke a word. Then we dropped into mutual explanations, and the mystery was cleared away. It came out that Higbie had depended on me, as I had on him, and as both of us had on the foreman. The folly of it! It

was the first time that ever staid and steadfast Higbie had left an important matter to chance or failed to be true to his full share of a responsibility.

But he had never seen my note till this moment, and this moment was the first time he had been in the cabin since the day he had seen me last. He, also, had left a note for me, on that same fatal afternoon—had ridden up on horseback, and looked through the window, and being in a hurry and not seeing me, had tossed the note into the cabin through a broken pane. Here it was, on the floor, where it had remained undisturbed for nine days:

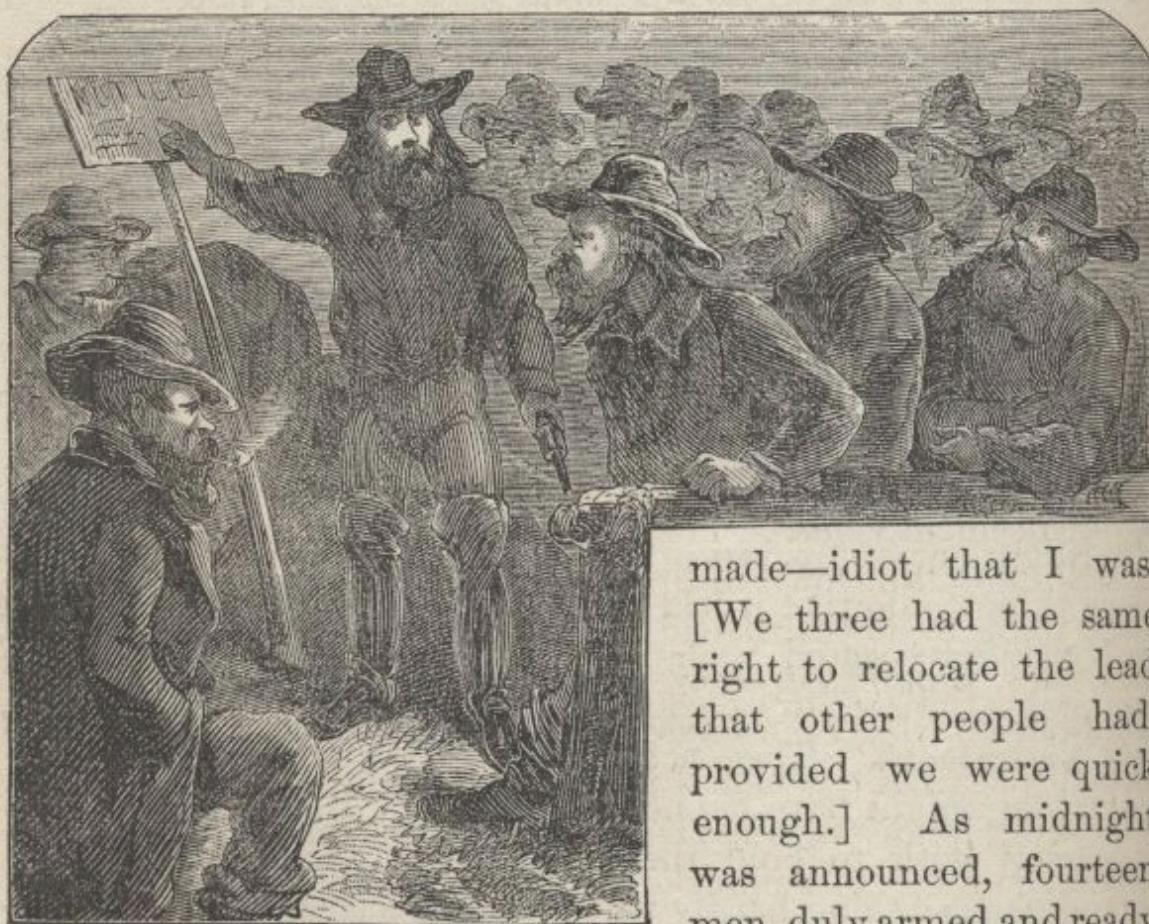
"Don't fail to do the work before the ten days expire. W. has passed through and given me notice. I am to join him at Mono Lake, and we shall go on from there to-night. He says he will find it this time, sure. CAL."

"W." meant Whiteman, of course. That thrice accursed "cement!"

That was the way of it. An old miner, like Higbie, could no more withstand the fascination of a mysterious mining excitement like this "cement" foolishness, than he could refrain from eating when he was famishing. Higbie had been dreaming about the marvelous cement for months; and now, against his better judgment, he had gone off and "taken the chances" on my keeping secure a mine worth a million undiscovered cement veins. They had not been followed this time. His riding out of town in broad daylight was such a common-place thing to do that it had not attracted any attention. He said they prosecuted their search in the fastnesses of the mountains during nine days, without success; they could not find the cement. Then a ghastly fear came over him that something might have happened to prevent the doing of the necessary work to hold the blind lead (though indeed he thought such a thing hardly possible), and forthwith he started home with all speed. He would have reached Esmeralda in time, but his horse broke down and he had to walk a great part of the distance. And so it happened that as he came into Esmeralda by one road, I entered it by another. His was the superior energy, however, for he went straight to the Wide West, instead of turning aside as I had done—and he arrived there about five or ten minutes too late! The "notice" was already up, the "relocation" of our mine completed beyond recall, and the crowd rapidly dispersing. He learned some facts before he left the ground. The foreman had not been seen about the streets since the night we had located the mine—a telegram had called him to California on a matter of life and death, it

was said. At any rate he had done no work and the watchful eyes of the community were taking note of the fact. At midnight of this woful tenth day, the ledge would be "relocatable," and by eleven o'clock the hill was black with men prepared to do the relocating. That was the crowd I had seen when I fancied a new "strike" had been made—idiot that I was.

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ENFORCING A COMPROMISE.

made—idiot that I was. [We three had the same right to relocate the lead that other people had, provided we were quick enough.] As midnight was announced, fourteen men, duly armed and ready to back their proceedings,

put up their "notice" and proclaimed their ownership of the blind lead, under the new name of the "Johnson." But A. D. Allen our partner (the foreman) put in a sudden appearance about that time, with a cocked revolver in his hand, and said his name must be added to the list, or he would "thin out the Johnson company some." He was a manly, splendid, de-

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Higbie and I cleared out on a new mining excitement the next morning, glad to get away from the scene of our sufferings, and after a month or two of hardship and disappointment, returned to Esmeralda once more. Then we learned that the Wide West and the Johnson companies had consolidated; that the stock, thus united, comprised five thousand feet, or shares; that the foreman, apprehending tiresome litigation, and considering such a huge concern unwieldy, had sold his hundred feet for ninety thousand dollars in gold and gone home to the States to enjoy it. If the stock was worth such a gallant figure, with five thousand shares in the corporation, it makes me dizzy to think what it would have been worth with only our original six hundred in it. It was the difference between six hundred men owning a house and five thousand owning it. We would have been millionaires if we had only worked with pick and spade one little day on our property and so secured our ownership!

It reads like a wild fancy sketch, but the evidence of many witnesses, and likewise that of the official records of Esmeralda District, is easily obtainable in proof that it is a true history. I can always have it to say that I was absolutely and unquestionably worth a million dollars, once, for ten days.

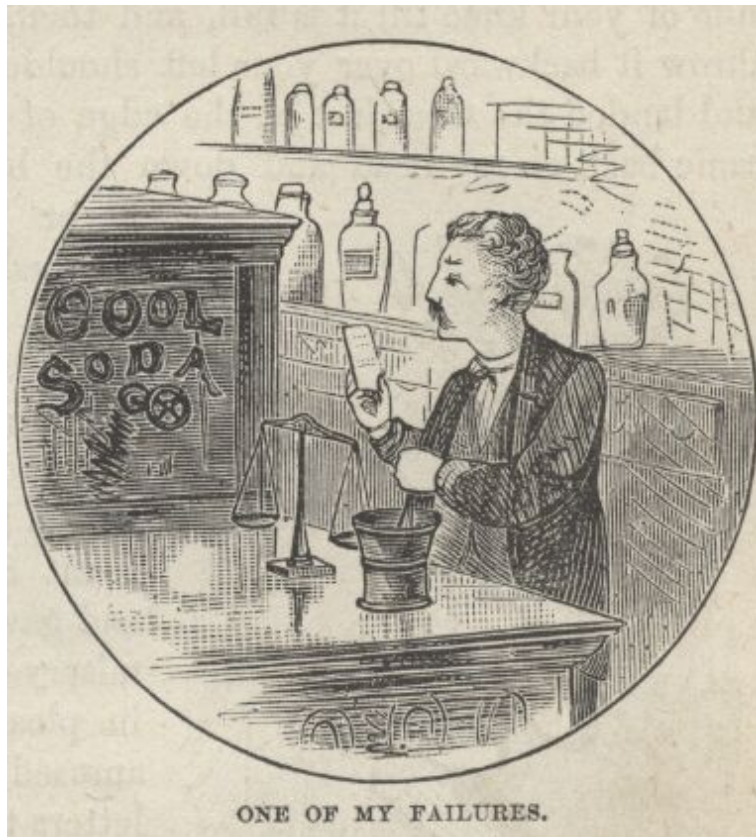
A year ago my esteemed and in every way estimable old millionaire partner, Higbie, wrote me from an obscure little mining camp in California that after nine or ten years of buffetings and hard striving, he was at last in a position where he could command twenty-five hundred dollars, and said he meant to go into the fruit business in a modest way. How such a thought

would have insulted him the night we lay in our cabin planning European trips and brown stone houses on Russian Hill!

CHAPTER XLII.

What to do next?

It was a momentous question. I had gone out into the world to shift for myself, at the age of thirteen (for my father had endorsed for friends; and although he left us a sumptuous legacy of pride in his fine Virginian stock and its national distinction, I presently found that I could not live on that alone without occasional bread to wash it down with). I had gained a livelihood in various vocations, but had not dazzled anybody with my successes; still the list was before me, and the amplest liberty in the matter of choosing, provided I wanted to work—which I did not, after being so wealthy. I had once been a grocery clerk, for one day, but had consumed so much sugar in that time that I was relieved from further duty by the proprietor; said he wanted me outside, so that he could have my custom. I had studied law an entire week, and then given it up because it was so prosy and tiresome. I had engaged briefly in the study of blacksmithing, but wasted so much time trying to fix the bellows so that it would blow itself, that the master turned me adrift in disgrace, and told me I would come to no good. I had been a bookseller's clerk for awhile, but the customers bothered me so much I could not read with any comfort, and so the proprietor gave me a furlough and forgot to put a limit to it. I had clerked in a drug store part of a summer, but my prescriptions were unlucky, and we appeared to sell more stomach pumps than soda water. So I had to go.



I had made of myself a tolerable printer, under the impression that I would be another Franklin some day, but somehow had missed the connection thus far. There was no berth open in the Esmeralda Union, and besides I had always been such a slow compositor that I looked with envy upon the achievements of apprentices of two years' standing; and when I took a "take," foremen were in the habit of suggesting that it would be wanted "some time during the year."

I was a good average St. Louis and New Orleans pilot and by no means ashamed of my abilities in that line; wages were two hundred and fifty dollars a month and no board to pay, and I did long to stand behind a wheel again and never roam any more—but I had been making such an ass of myself lately in grandiloquent letters home about my blind lead and my European excursion that I did what many and many a poor disappointed miner had done before; said "It is all over with me now, and I will never go back home to be pitied—and snubbed." I had been a private secretary, a

silver miner and a silver mill operative, and amounted to less than nothing in each, and now—

What to do next?

I yielded to Higbie's appeals and consented to try the mining once more. We climbed far up on the mountain side and went to work on a little rubbishy claim of ours that had a shaft on it eight feet deep. Higbie descended into it and worked bravely with his pick till he had loosened up a deal of rock and dirt and then I went down with a long-handled shovel (the most awkward invention yet contrived by man) to throw it out. You must brace the shovel forward with the side of your knee till it is full, and then, with a skilful toss, throw it backward over your left shoulder. I made the toss, and landed the mess just on the edge of the shaft and it all came back on my head and down the back of my neck. I never said a word, but climbed out and walked home. I inwardly resolved that I would starve before I would make a target of myself and shoot rubbish at it with a long-handled shovel.



I sat down, in the cabin, and gave myself up to solid misery—so to speak. Now in pleasanter days I had amused myself with writing letters to the chief paper of the Territory, the Virginia Daily Territorial Enterprise, and had always been surprised when they appeared in print. My good opinion of the editors had steadily declined; for it seemed to me that they might have found something better to fill up with than my literature. I had found a letter in the post office as I came home from the hill side, and finally I opened it. Eureka! [I never did know what Eureka meant, but it seems to be as proper a word to heave in as any when no other that sounds pretty offers.] It was a deliberate offer to me of Twenty-Five Dollars a week to come up to Virginia and be city editor of the Enterprise.

I would have challenged the publisher in the "blind lead" days—I wanted to fall down and worship him, now. Twenty-Five Dollars a week—it looked like bloated luxury—a fortune a sinful and lavish waste of money. But my transports cooled when I thought of my inexperience and consequent unfitness for the position—and straightway, on top of this, my long array of failures rose up before me. Yet if I refused this place I must presently become dependent upon somebody for my bread, a thing necessarily distasteful to a man who had never experienced such a humiliation since he was thirteen years old. Not much to be proud of, since it is so common—but then it was all I had to be proud of. So I was scared into being a city editor. I would have declined, otherwise. Necessity is the mother of "taking chances." I do not doubt that if, at that time, I had been offered a salary to translate the Talmud from the original Hebrew, I would have accepted—albeit with diffidence and some misgivings—and thrown as much variety into it as I could for the money.



I went up to Virginia and entered upon my new vocation. I was a rusty looking city editor, I am free to confess—coatless, slouch hat, blue woolen shirt, pantaloons stuffed into boot-tops, whiskered half down to the waist, and the universal navy revolver slung to my belt. But I secured a more Christian costume and discarded the revolver.

I had never had occasion to kill anybody, nor ever felt a desire to do so, but had worn the thing in deference to popular sentiment, and in order that I might not, by its absence, be offensively conspicuous, and a subject of remark. But the other editors, and all the printers, carried revolvers. I asked the chief editor and proprietor (Mr. Goodman, I will call him, since it describes him as well as any name could do) for some instructions with regard to my duties, and he told me to go all over town and ask all sorts of people all sorts of questions, make notes of the information gained, and write them out for publication. And he added:

"Never say 'We learn' so-and-so, or 'It is reported,' or 'It is rumored,' or 'We understand' so-and-so, but go to headquarters and get the absolute facts, and then speak out and say 'It is so-and-so.' Otherwise, people will not put confidence in your news. Unassailable certainly is the thing that gives a newspaper the firmest and most valuable reputation."

It was the whole thing in a nut-shell; and to this day when I find a reporter commencing his article with "We understand," I gather a suspicion that he has not taken as much pains to inform himself as he ought to have done. I moralize well, but I did not always practise well when I was a city editor; I let fancy get the upper hand of fact too often when there was a dearth of news. I can never forget my first day's experience as a reporter. I wandered about town questioning everybody, boring everybody, and finding out that nobody knew anything. At the end of five hours my notebook was still barren. I spoke to Mr. Goodman. He said:

"Dan used to make a good thing out of the hay wagons in a dry time when there were no fires or inquests. Are there no hay wagons in from the Truckee? If there are, you might speak of the renewed activity and all that sort of thing, in the hay business, you know."



"It isn't sensational or exciting, but it fills up and looks business like."

I canvassed the city again and found one wretched old hay truck dragging in from the country. But I made affluent use of it. I multiplied it by sixteen, brought it into town from sixteen different directions, made sixteen separate items out of it, and got up such another sweat about hay as Virginia City had never seen in the world before.

This was encouraging. Two nonpareil columns had to be filled, and I was getting along. Presently, when things began to look dismal again, a desperado killed a man in a saloon and joy returned once more. I never was so glad over any mere trifle before in my life. I said to the murderer:

"Sir, you are a stranger to me, but you have done me a kindness this day which I can never forget. If whole years of gratitude can be to you any slight compensation, they shall be yours. I was in trouble and you have relieved me nobly and at a time when all seemed dark and drear. Count me your friend from this time forth, for I am not a man to forget a favor."



If I did not really say that to him I at least felt a sort of itching desire to do it. I wrote up the murder with a hungry attention to details, and when it was finished experienced but one regret—namely, that they had not hanged my benefactor on the spot, so that I could work him up too.

Next I discovered some emigrant wagons going into camp on the plaza and found that they had lately come through the hostile Indian country and had fared rather roughly. I made the best of the item that the circumstances permitted, and felt that if I were not confined within rigid limits by the presence of the reporters of the other papers I could add particulars that would make the article much more interesting. However, I found one wagon that was going on to California, and made some judicious inquiries of the proprietor. When I learned, through his short and surly answers to my cross-

questioning, that he was certainly going on and would not be in the city next day to make trouble, I got ahead of the other papers, for I took down his list of names and added his party to the killed and wounded. Having more scope here, I put this wagon through an Indian fight that to this day has no parallel in history.

My two columns were filled. When I read them over in the morning I felt that I had found my legitimate occupation at last. I reasoned within myself that news, and stirring news, too, was what a paper needed, and I felt that I was peculiarly endowed with the ability to furnish it. Mr. Goodman said that I was as good a reporter as Dan. I desired no higher commendation. With encouragement like that, I felt that I could take my pen and murder all the immigrants on the plains if need be and the interests of the paper demanded it.



CHAPTER XLIII.

However, as I grew better acquainted with the business and learned the run of the sources of information I ceased to require the aid of fancy to any large extent, and became able to fill my columns without diverging noticeably from the domain of fact.

I struck up friendships with the reporters of the other journals, and we swapped "regulars" with each other and thus economized work. "Regulars" are permanent sources of news, like courts, bullion returns, "clean-ups" at the quartz mills, and inquests. Inasmuch as everybody went armed, we had an inquest about every day, and so this department was naturally set down among the "regulars." We had lively papers in those days. My great competitor among the reporters was Boggs of the Union. He was an excellent reporter. Once in three or four months he would get a little intoxicated, but as a general thing he was a wary and cautious drinker although always ready to tamper a little with the enemy. He had the advantage of me in one thing; he could get the monthly public school report and I could not, because the principal hated the Enterprise. One snowy night when the report was due, I started out sadly wondering how I was going to get it. Presently, a few steps up the almost deserted street I stumbled on Boggs and asked him where he was going.

"After the school report."

"I'll go along with you."

"No, sir. I'll excuse you."

"Just as you say."

A saloon-keeper's boy passed by with a steaming pitcher of hot punch, and Boggs snuffed the fragrance gratefully. He gazed fondly after the boy and saw him start up the Enterprise stairs. I said:

"I wish you could help me get that school business, but since you can't, I must run up to the Union office and see if I can get them to let me have a

proof of it after they have set it up, though I don't begin to suppose they will. Good night."

"Hold on a minute. I don't mind getting the report and sitting around with the boys a little, while you copy it, if you're willing to drop down to the principal's with me."

"Now you talk like a rational being. Come along."

We plowed a couple of blocks through the snow, got the report and returned to our office. It was a short document and soon copied. Meantime Boggs helped himself to the punch. I gave the manuscript back to him and we started out to get an inquest, for we heard pistol shots near by. We got the particulars with little loss of time, for it was only an inferior sort of bar-room murder, and of little interest to the public, and then we separated. Away at three o'clock in the morning, when we had gone to press and were having a relaxing concert as usual—for some of the printers were good singers and others good performers on the guitar and on that atrocity the accordion—the proprietor of the Union strode in and desired to know if anybody had heard anything of Boggs or the school report. We stated the case, and all turned out to help hunt for the delinquent. We found him standing on a table in a saloon, with an old tin lantern in one hand and the school report in the other, haranguing a gang of intoxicated Cornish miners on the iniquity of squandering the public moneys on education "when hundreds and hundreds of honest hard-working men are literally starving for whiskey." [Riotous applause.] He had been assisting in a regal spree with those parties for hours. We dragged him away and put him to bed.



Of course there was no school report in the Union, and Boggs held me accountable, though I was innocent of any intention or desire to compass its absence from that paper and was as sorry as any one that the misfortune had occurred.

But we were perfectly friendly. The day that the school report was next due, the proprietor of the "Genessee" mine furnished us a buggy and asked us to go down and write something about the property—a very common request and one always gladly acceded to when people furnished buggies, for we were as fond of pleasure excursions as other people. In due time we arrived at the "mine"—nothing but a hole in the ground ninety feet deep, and no way of getting down into it but by holding on to a rope and being lowered with a windlass. The workmen had just gone off somewhere to dinner. I was

not strong enough to lower Boggs's bulk; so I took an unlighted candle in my teeth, made a loop for my foot in the end of the rope, implored Boggs not to go to sleep or let the windlass get the start of him, and then swung out over the shaft. I reached the bottom muddy and bruised about the elbows, but safe. I lit the candle, made an examination of the rock, selected some specimens and shouted to Boggs to hoist away. No answer. Presently a head appeared in the circle of daylight away aloft, and a voice came down:

"Are you all set?"

"All set—hoist away."

"Are you comfortable?"

"Perfectly."

"Could you wait a little?"

"Oh certainly—no particular hurry."

"Well—good by."

"Why? Where are you going?"

"After the school report!"



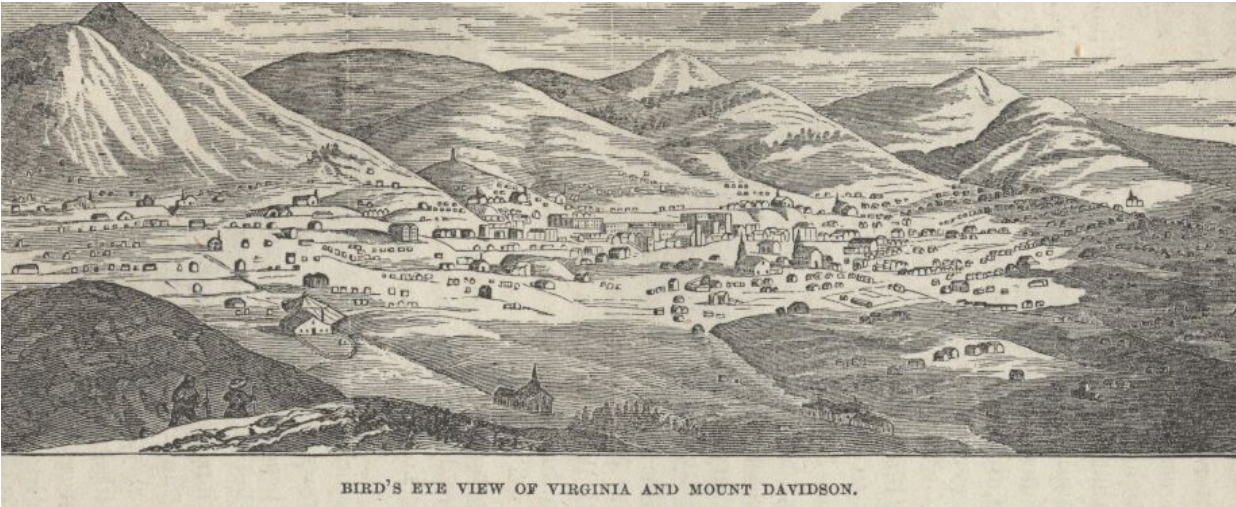
And he did. I staid down there an hour, and surprised the workmen when they hauled up and found a man on the rope instead of a bucket of rock. I walked home, too—five miles—up hill. We had no school report next morning; but the Union had.

Six months after my entry into journalism the grand "flush times" of Silverland began, and they continued with unabated splendor for three years. All difficulty about filling up the "local department" ceased, and the only trouble now was how to make the lengthened columns hold the world of incidents and happenings that came to our literary net every day. Virginia had grown to be the "livest" town, for its age and population, that America had ever produced. The sidewalks swarmed with people—to such an extent, indeed, that it was generally no easy matter to stem the human tide. The streets themselves were just as crowded with quartz wagons, freight teams and other vehicles. The procession was endless. So great was the pack, that buggies frequently had to wait half an hour for an opportunity to cross the principal street. Joy sat on every countenance, and there was a glad, almost fierce, intensity in every eye, that told of the money-getting schemes that were seething in every brain and the high hope that held sway in every heart. Money was as plenty as dust; every individual considered himself wealthy, and a melancholy countenance was nowhere to be seen. There were military companies, fire companies, brass bands, banks, hotels, theatres, "hurdy-gurdy houses," wide-open gambling palaces, political pow-wows, civic processions, street fights, murders, inquests, riots, a whiskey mill every fifteen steps, a Board of Aldermen, a Mayor, a City Surveyor, a City Engineer, a Chief of the Fire Department, with First, Second and Third Assistants, a Chief of Police, City Marshal and a large police force, two Boards of Mining Brokers, a dozen breweries and half a dozen jails and station-houses in full operation, and some talk of building a church. The "flush times" were in magnificent flower! Large fire-proof brick buildings were going up in the principal streets, and the wooden suburbs were spreading out in all directions. Town lots soared up to prices that were amazing.

The great "Comstock lode" stretched its opulent length straight through the town from north to south, and every mine on it was in diligent process of development. One of these mines alone employed six hundred and seventy-five men, and in the matter of elections the adage was, "as the 'Gould and Curry' goes, so goes the city." Laboring men's wages were four and six dollars a day, and they worked in three "shifts" or gangs, and the blasting and picking and shoveling went on without ceasing, night and day.

The "city" of Virginia roosted royally midway up the steep side of Mount Davidson, seven thousand two hundred feet above the level of the sea, and in the clear Nevada atmosphere was visible from a distance of fifty miles! It claimed a population of fifteen thousand to eighteen thousand, and all day long half of this little army swarmed the streets like bees and the other half swarmed among the drifts and tunnels of the "Comstock," hundreds of feet down in the earth directly under those same streets. Often we felt our chairs jar, and heard the faint boom of a blast down in the bowels of the earth under the office.

The mountain side was so steep that the entire town had a slant to it like a roof. Each street was a terrace, and from each to the next street below the descent was forty or fifty feet. The fronts of the houses were level with the street they faced, but their rear first floors were propped on lofty stilts; a man could stand at a rear first floor window of a C street house and look down the chimneys of the row of houses below him facing D street. It was a laborious climb, in that thin atmosphere, to ascend from D to A street, and you were panting and out of breath when you got there; but you could turn around and go down again like a house a-fire—so to speak. The atmosphere was so rarified, on account of the great altitude, that one's blood lay near the surface always, and the scratch of a pin was a disaster worth worrying about, for the chances were that a grievous erysipelas would ensue. But to offset this, the thin atmosphere seemed to carry healing to gunshot wounds, and therefore, to simply shoot your adversary through both lungs was a thing not likely to afford you any permanent satisfaction, for he would be nearly certain to be around looking for you within the month, and not with an opera glass, either.



Enlarge

From Virginia's airy situation one could look over a vast, far-reaching panorama of mountain ranges and deserts; and whether the day was bright or overcast, whether the sun was rising or setting, or flaming in the zenith, or whether night and the moon held sway, the spectacle was always impressive and beautiful. Over your head Mount Davidson lifted its gray dome, and before and below you a rugged canyon clove the battlemented hills, making a sombre gateway through which a soft-tinted desert was glimpsed, with the silver thread of a river winding through it, bordered with trees which many miles of distance diminished to a delicate fringe; and still further away the snowy mountains rose up and stretched their long barrier to the filmy horizon—far enough beyond a lake that burned in the desert like a fallen sun, though that, itself, lay fifty miles removed. Look from your window where you would, there was fascination in the picture. At rare intervals—but very rare—there were clouds in our skies, and then the setting sun would gild and flush and glorify this mighty expanse of scenery with a bewildering pomp of color that held the eye like a spell and moved the spirit like music.

CHAPTER XLIV.

My salary was increased to forty dollars a week. But I seldom drew it. I had plenty of other resources, and what were two broad twenty-dollar gold pieces to a man who had his pockets full of such and a cumbersome abundance of bright half dollars besides? [Paper money has never come into use on the Pacific coast.] Reporting was lucrative, and every man in the town was lavish with his money and his "feet." The city and all the great mountain side were riddled with mining shafts. There were more mines than miners. True, not ten of these mines were yielding rock worth hauling to a mill, but everybody said, "Wait till the shaft gets down where the ledge comes in solid, and then you will see!" So nobody was discouraged. These were nearly all "wild cat" mines, and wholly worthless, but nobody believed it then. The "Ophir," the "Gould & Curry," the "Mexican," and other great mines on the Comstock lead in Virginia and Gold Hill were turning out huge piles of rich rock every day, and every man believed that his little wild cat claim was as good as any on the "main lead" and would infallibly be worth a thousand dollars a foot when he "got down where it came in solid." Poor fellow, he was blessedly blind to the fact that he never would see that day. So the thousand wild cat shafts burrowed deeper and deeper into the earth day by day, and all men were beside themselves with hope and happiness. How they labored, prophesied, exulted! Surely nothing like it was ever seen before since the world began. Every one of these wild cat mines—not mines, but holes in the ground over imaginary mines—was incorporated and had handsomely engraved "stock" and the stock was salable, too. It was bought and sold with a feverish avidity in the boards every day. You could go up on the mountain side, scratch around and find a ledge (there was no lack of them), put up a "notice" with a grandiloquent name in it, start a shaft, get your stock printed, and with nothing whatever to prove that your mine was worth a straw, you could put your stock on the market and sell out for hundreds and even thousands of dollars. To make money, and make it fast, was as easy as it was to eat your dinner.



Every man owned "feet" in fifty different wild cat mines and considered his fortune made. Think of a city with not one solitary poor man in it! One would suppose that when month after month went by and still not a wild cat mine (by wild cat I mean, in general terms, any claim not located on the mother vein, i.e., the "Comstock") yielded a ton of rock worth crushing, the people would begin to wonder if they were not putting too much faith in their prospective riches; but there was not a thought of such a thing. They burrowed away, bought and sold, and were happy.

New claims were taken up daily, and it was the friendly custom to run straight to the newspaper offices, give the reporter forty or fifty "feet," and get them to go and examine the mine and publish a notice of it. They did not care a fig what you said about the property so you said something.

Consequently we generally said a word or two to the effect that the "indications" were good, or that the ledge was "six feet wide," or that the rock "resembled the Comstock" (and so it did—but as a general thing the resemblance was not startling enough to knock you down). If the rock was moderately promising, we followed the custom of the country, used strong adjectives and frothed at the mouth as if a very marvel in silver discoveries had transpired. If the mine was a "developed" one, and had no pay ore to show (and of course it hadn't), we praised the tunnel; said it was one of the most infatuating tunnels in the land; driveled and driveled about the tunnel till we ran entirely out of ecstasies—but never said a word about the rock. We would squander half a column of adulation on a shaft, or a new wire rope, or a dressed pine windlass, or a fascinating force pump, and close with a burst of admiration of the "gentlemanly and efficient Superintendent" of the mine—but never utter a whisper about the rock. And those people were always pleased, always satisfied. Occasionally we patched up and varnished our reputation for discrimination and stern, undeviating accuracy, by giving some old abandoned claim a blast that ought to have made its dry bones rattle—and then somebody would seize it and sell it on the fleeting notoriety thus conferred upon it.

There was nothing in the shape of a mining claim that was not salable. We received presents of "feet" every day. If we needed a hundred dollars or so, we sold some; if not, we hoarded it away, satisfied that it would ultimately be worth a thousand dollars a foot. I had a trunk about half full of "stock." When a claim made a stir in the market and went up to a high figure, I searched through my pile to see if I had any of its stock—and generally found it.

The prices rose and fell constantly; but still a fall disturbed us little, because a thousand dollars a foot was our figure, and so we were content to let it fluctuate as much as it pleased till it reached it. My pile of stock was not all given to me by people who wished their claims "noticed." At least half of it was given me by persons who had no thought of such a thing, and looked for nothing more than a simple verbal "thank you;" and you were not even obliged by law to furnish that. If you are coming up the street with a couple of baskets of apples in your hands, and you meet a friend, you naturally invite him to take a few. That describes the condition of things in Virginia in the "flush times." Every man had his pockets full of stock, and it

was the actual custom of the country to part with small quantities of it to friends without the asking.



Very often it was a good idea to close the transaction instantly, when a man offered a stock present to a friend, for the offer was only good and binding at that moment, and if the price went to a high figure shortly afterward the procrastination was a thing to be regretted. Mr. Stewart (Senator, now, from Nevada) one day told me he would give me twenty feet of "Justis" stock if I would walk over to his office. It was worth five or ten dollars a foot. I asked him to make the offer good for next day, as I was just going to dinner. He said he would not be in town; so I risked it and took my dinner instead of the stock. Within the week the price went up to seventy

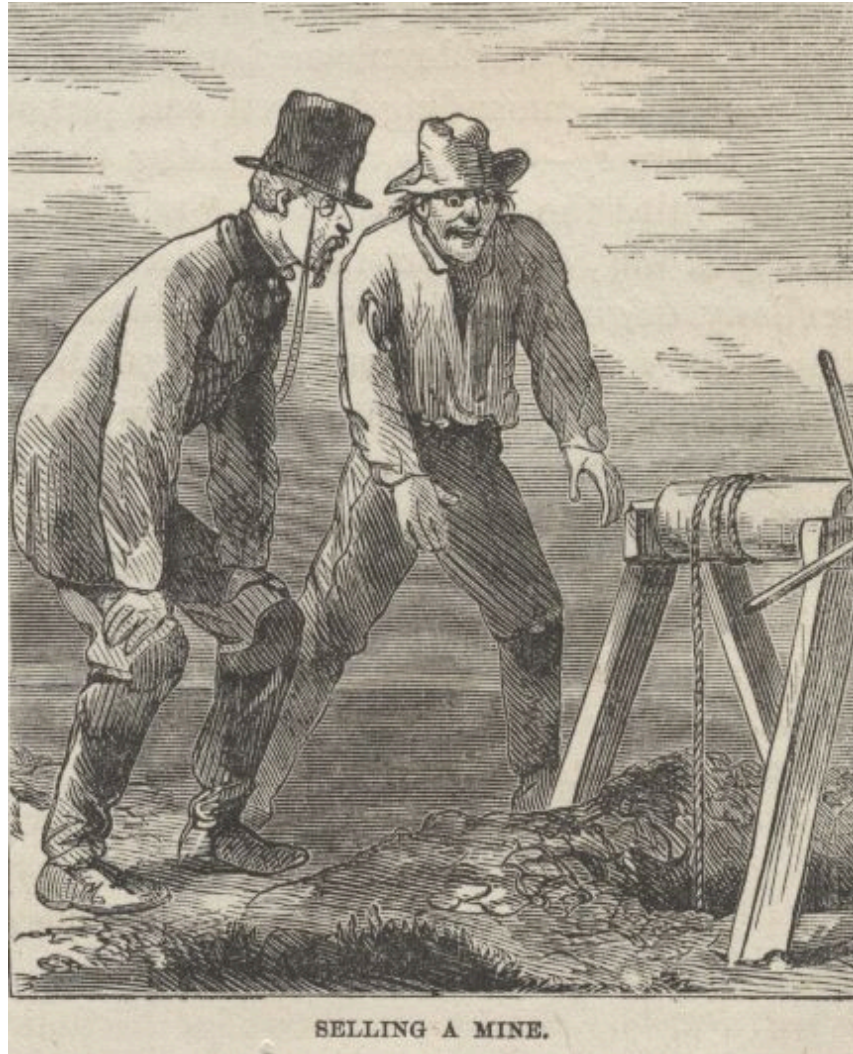
dollars and afterward to a hundred and fifty, but nothing could make that man yield. I suppose he sold that stock of mine and placed the guilty proceeds in his own pocket. [My revenge will be found in the accompanying portrait.] I met three friends one afternoon, who said they had been buying "Overman" stock at auction at eight dollars a foot. One said if I would come up to his office he would give me fifteen feet; another said he would add fifteen; the third said he would do the same. But I was going after an inquest and could not stop. A few weeks afterward they sold all their "Overman" at six hundred dollars a foot and generously came around to tell me about it—and also to urge me to accept of the next forty-five feet of it that people tried to force on me.



These are actual facts, and I could make the list a long one and still confine myself strictly to the truth. Many a time friends gave us as much as twenty-five feet of stock that was selling at twenty-five dollars a foot, and they thought no more of it than they would of offering a guest a cigar. These were "flush times" indeed! I thought they were going to last always, but somehow I never was much of a prophet.

To show what a wild spirit possessed the mining brain of the community, I will remark that "claims" were actually "located" in excavations for cellars, where the pick had exposed what seemed to be quartz veins—and not cellars in the suburbs, either, but in the very heart of the city; and forthwith stock would be issued and thrown on the market. It was small matter who the cellar belonged to—the "ledge" belonged to the finder, and unless the United States government interfered (inasmuch as the government holds the primary right to mines of the noble metals in Nevada—or at least did then), it was considered to be his privilege to work it. Imagine a stranger staking out a mining claim among the costly shrubbery in your front yard and calmly proceeding to lay waste the ground with pick and shovel and blasting powder! It has been often done in California. In the middle of one of the principal business streets of Virginia, a man "located" a mining claim and began a shaft on it. He gave me a hundred feet of the stock and I sold it for a fine suit of clothes because I was afraid somebody would fall down the shaft and sue for damages. I owned in another claim that was located in the middle of another street; and to show how absurd people can be, that "East India" stock (as it was called) sold briskly although there was an ancient tunnel running directly under the claim and any man could go into it and see that it did not cut a quartz ledge or anything that remotely resembled one.

One plan of acquiring sudden wealth was to "salt" a wild cat claim and sell out while the excitement was up. The process was simple.



The schemer located a worthless ledge, sunk a shaft on it, bought a wagon load of rich "Comstock" ore, dumped a portion of it into the shaft and piled the rest by its side, above ground. Then he showed the property to a simpleton and sold it to him at a high figure. Of course the wagon load of rich ore was all that the victim ever got out of his purchase. A most remarkable case of "salting" was that of the "North Ophir." It was claimed that this vein was a "remote extension" of the original "Ophir," a valuable mine on the "Comstock." For a few days everybody was talking about the rich developments in the North Ophir. It was said that it yielded perfectly pure silver in small, solid lumps. I went to the place with the owners, and found a shaft six or eight feet deep, in the bottom of which was a badly

shattered vein of dull, yellowish, unpromising rock. One would as soon expect to find silver in a grindstone. We got out a pan of the rubbish and washed it in a puddle, and sure enough, among the sediment we found half a dozen black, bullet- looking pellets of unimpeachable "native" silver. Nobody had ever heard of such a thing before; science could not account for such a queer novelty. The stock rose to sixty-five dollars a foot, and at this figure the world-renowned tragedian, McKean Buchanan, bought a commanding interest and prepared to quit the stage once more—he was always doing that. And then it transpired that the mine had been "salted"—and not in any hackneyed way, either, but in a singularly bold, barefaced and peculiarly original and outrageous fashion. On one of the lumps of "native" silver was discovered the minted legend, "TED STATES OF," and then it was plainly apparent that the mine had been "salted" with melted half-dollars! The lumps thus obtained had been blackened till they resembled native silver, and were then mixed with the shattered rock in the bottom of the shaft. It is literally true. Of course the price of the stock at once fell to nothing, and the tragedian was ruined. But for this calamity we might have lost McKean Buchanan from the stage.

CHAPTER XLV.

The "flush times" held bravely on. Something over two years before, Mr. Goodman and another journeyman printer, had borrowed forty dollars and set out from San Francisco to try their fortunes in the new city of Virginia. They found the Territorial Enterprise, a poverty-stricken weekly journal, gasping for breath and likely to die. They bought it, type, fixtures, good-will and all, for a thousand dollars, on long time. The editorial sanctum, news-room, press-room, publication office, bed-chamber, parlor, and kitchen were all compressed into one apartment and it was a small one, too. The editors and printers slept on the floor, a Chinaman did their cooking, and the "imposing-stone" was the general dinner table. But now things were changed. The paper was a great daily, printed by steam; there were five editors and twenty-three compositors; the subscription price was sixteen dollars a year; the advertising rates were exorbitant, and the columns crowded. The paper was clearing from six to ten thousand dollars a month, and the "Enterprise Building" was finished and ready for occupation—a stately fireproof brick. Every day from five all the way up to eleven columns of "live" advertisements were left out or crowded into spasmodic and irregular "supplements."

The "Gould & Curry" company were erecting a monster hundred-stamp mill at a cost that ultimately fell little short of a million dollars. Gould & Curry stock paid heavy dividends—a rare thing, and an experience confined to the dozen or fifteen claims located on the "main lead," the "Comstock." The Superintendent of the Gould & Curry lived, rent free, in a fine house built and furnished by the company. He drove a fine pair of horses which were a present from the company, and his salary was twelve thousand dollars a year. The superintendent of another of the great mines traveled in grand state, had a salary of twenty-eight thousand dollars a year, and in a law suit in after days claimed that he was to have had one per cent. on the gross yield of the bullion likewise.

Money was wonderfully plenty. The trouble was, not how to get it,—but how to spend it, how to lavish it, get rid of it, squander it. And so it was a

happy thing that just at this juncture the news came over the wires that a great United States Sanitary Commission had been formed and money was wanted for the relief of the wounded sailors and soldiers of the Union languishing in the Eastern hospitals. Right on the heels of it came word that San Francisco had responded superbly before the telegram was half a day old. Virginia rose as one man! A Sanitary Committee was hurriedly organized, and its chairman mounted a vacant cart in C street and tried to make the clamorous multitude understand that the rest of the committee were flying hither and thither and working with all their might and main, and that if the town would only wait an hour, an office would be ready, books opened, and the Commission prepared to receive contributions. His voice was drowned and his information lost in a ceaseless roar of cheers, and demands that the money be received now—they swore they would not wait. The chairman pleaded and argued, but, deaf to all entreaty, men plowed their way through the throng and rained checks of gold coin into the cart and skurried away for more. Hands clutching money, were thrust aloft out of the jam by men who hoped this eloquent appeal would cleave a road their strugglings could not open. The very Chinamen and Indians caught the excitement and dashed their half dollars into the cart without knowing or caring what it was all about. Women plunged into the crowd, trimly attired, fought their way to the cart with their coin, and emerged again, by and by, with their apparel in a state of hopeless dilapidation. It was the wildest mob Virginia had ever seen and the most determined and ungovernable; and when at last it abated its fury and dispersed, it had not a penny in its pocket.



To use its own phraseology, it came there "flush" and went away "busted."

After that, the Commission got itself into systematic working order, and for weeks the contributions flowed into its treasury in a generous stream. Individuals and all sorts of organizations levied upon themselves a regular weekly tax for the sanitary fund, graduated according to their means, and

there was not another grand universal outburst till the famous "Sanitary Flour Sack" came our way. Its history is peculiar and interesting. A former schoolmate of mine, by the name of Reuel Gridley, was living at the little city of Austin, in the Reese river country, at this time, and was the Democratic candidate for mayor. He and the Republican candidate made an agreement that the defeated man should be publicly presented with a fifty-pound sack of flour by the successful one, and should carry it home on his shoulder. Gridley was defeated. The new mayor gave him the sack of flour, and he shouldered it and carried it a mile or two, from Lower Austin to his home in Upper Austin, attended by a band of music and the whole population. Arrived there, he said he did not need the flour, and asked what the people thought he had better do with it. A voice said:

"Sell it to the highest bidder, for the benefit of the Sanitary fund."

The suggestion was greeted with a round of applause, and Gridley mounted a dry-goods box and assumed the role of auctioneer. The bids went higher and higher, as the sympathies of the pioneers awoke and expanded, till at last the sack was knocked down to a mill man at two hundred and fifty dollars, and his check taken. He was asked where he would have the flour delivered, and he said:

"Nowhere—sell it again."

Now the cheers went up royally, and the multitude were fairly in the spirit of the thing. So Gridley stood there and shouted and perspired till the sun went down; and when the crowd dispersed he had sold the sack to three hundred different people, and had taken in eight thousand dollars in gold. And still the flour sack was in his possession.



Enlarge

The news came to Virginia, and a telegram went back:

"Fetch along your flour sack!"

Thirty-six hours afterward Gridley arrived, and an afternoon mass meeting was held in the Opera House, and the auction began. But the sack had come sooner than it was expected; the people were not thoroughly aroused, and the sale dragged. At nightfall only five thousand dollars had been secured, and there was a crestfallen feeling in the community. However, there was no disposition to let the matter rest here and acknowledge vanquishment at the hands of the village of Austin. Till late in the night the principal citizens were at work arranging the morrow's campaign, and when they went to bed they had no fears for the result. At eleven the next morning a procession of open carriages, attended by clamorous bands of music and adorned with a moving display of flags, filed along C street and was soon in danger of

blockade by a huzzaing multitude of citizens. In the first carriage sat Gridley, with the flour sack in prominent view, the latter splendid with bright paint and gilt lettering; also in the same carriage sat the mayor and the recorder. The other carriages contained the Common Council, the editors and reporters, and other people of imposing consequence. The crowd pressed to the corner of C and Taylor streets, expecting the sale to begin there, but they were disappointed, and also unspeakably surprised; for the cavalcade moved on as if Virginia had ceased to be of importance, and took its way over the "divide," toward the small town of Gold Hill. Telegrams had gone ahead to Gold Hill, Silver City and Dayton, and those communities were at fever heat and rife for the conflict. It was a very hot day, and wonderfully dusty. At the end of a short half hour we descended into Gold Hill with drums beating and colors flying, and enveloped in imposing clouds of dust. The whole population—men, women and children, Chinamen and Indians, were massed in the main street, all the flags in town were at the mast head, and the blare of the bands was drowned in cheers. Gridley stood up and asked who would make the first bid for the National Sanitary Flour Sack. Gen. W. said:

"The Yellow Jacket silver mining company offers a thousand dollars, coin!"

A tempest of applause followed. A telegram carried the news to Virginia, and fifteen minutes afterward that city's population was massed in the streets devouring the tidings—for it was part of the programme that the bulletin boards should do a good work that day. Every few minutes a new dispatch was bulletined from Gold Hill, and still the excitement grew. Telegrams began to return to us from Virginia beseeching Gridley to bring back the flour sack; but such was not the plan of the campaign. At the end of an hour Gold Hill's small population had paid a figure for the flour sack that awoke all the enthusiasm of Virginia when the grand total was displayed upon the bulletin boards. Then the Gridley cavalcade moved on, a giant refreshed with new lager beer and plenty of it—for the people brought it to the carriages without waiting to measure it—and within three hours more the expedition had carried Silver City and Dayton by storm and was on its way back covered with glory. Every move had been telegraphed and bulletined, and as the procession entered Virginia and filed down C street at half past eight in the evening the town was abroad in the thoroughfares, torches were glaring, flags flying, bands playing, cheer on cheer cleaving the air, and the

city ready to surrender at discretion. The auction began, every bid was greeted with bursts of applause, and at the end of two hours and a half a population of fifteen thousand souls had paid in coin for a fifty-pound sack of flour a sum equal to forty thousand dollars in greenbacks! It was at a rate in the neighborhood of three dollars for each man, woman and child of the population. The grand total would have been twice as large, but the streets were very narrow, and hundreds who wanted to bid could not get within a block of the stand, and could not make themselves heard. These grew tired of waiting and many of them went home long before the auction was over. This was the greatest day Virginia ever saw, perhaps.

Gridley sold the sack in Carson city and several California towns; also in San Francisco. Then he took it east and sold it in one or two Atlantic cities, I think. I am not sure of that, but I know that he finally carried it to St. Louis, where a monster Sanitary Fair was being held, and after selling it there for a large sum and helping on the enthusiasm by displaying the portly silver bricks which Nevada's donation had produced, he had the flour baked up into small cakes and retailed them at high prices.

It was estimated that when the flour sack's mission was ended it had been sold for a grand total of a hundred and fifty thousand dollars in greenbacks! This is probably the only instance on record where common family flour brought three thousand dollars a pound in the public market.

It is due to Mr. Gridley's memory to mention that the expenses of his sanitary flour sack expedition of fifteen thousand miles, going and returning, were paid in large part if not entirely, out of his own pocket. The time he gave to it was not less than three months. Mr. Gridley was a soldier in the Mexican war and a pioneer Californian. He died at Stockton, California, in December, 1870, greatly regretted.



CHAPTER XLVI.

There were nabobs in those days—in the "flush times," I mean. Every rich strike in the mines created one or two. I call to mind several of these. They were careless, easy-going fellows, as a general thing, and the community at large was as much benefited by their riches as they were themselves—possibly more, in some cases.

Two cousins, teamsters, did some hauling for a man and had to take a small segregated portion of a silver mine in lieu of \$300 cash. They gave an outsider a third to open the mine, and they went on teaming. But not long. Ten months afterward the mine was out of debt and paying each owner \$8,000 to \$10,000 a month—say \$100,000 a year.

One of the earliest nabobs that Nevada was delivered of wore \$6,000 worth of diamonds in his bosom, and swore he was unhappy because he could not spend his money as fast as he made it.

Another Nevada nabob boasted an income that often reached \$16,000 a month; and he used to love to tell how he had worked in the very mine that yielded it, for five dollars a day, when he first came to the country.



The silver and sage-brush State has knowledge of another of these pets of fortune—lifted from actual poverty to affluence almost in a single night—who was able to offer \$100,000 for a position of high official distinction, shortly afterward, and did offer it—but failed to get it, his politics not being as sound as his bank account.

Then there was John Smith. He was a good, honest, kind-hearted soul, born and reared in the lower ranks of life, and miraculously ignorant. He drove a team, and owned a small ranch—a ranch that paid him a comfortable living, for although it yielded but little hay, what little it did yield was worth from \$250 to \$300 in gold per ton in the market. Presently Smith traded a few acres of the ranch for a small undeveloped silver mine in Gold Hill. He opened the mine and built a little unpretending ten-stamp mill. Eighteen months afterward he retired from the hay business, for his mining income

had reached a most comfortable figure. Some people said it was \$30,000 a month, and others said it was \$60,000. Smith was very rich at any rate.

And then he went to Europe and traveled. And when he came back he was never tired of telling about the fine hogs he had seen in England, and the gorgeous sheep he had seen in Spain, and the fine cattle he had noticed in the vicinity of Rome. He was full of wonders of the old world, and advised everybody to travel. He said a man never imagined what surprising things there were in the world till he had traveled.

One day, on board ship, the passengers made up a pool of \$500, which was to be the property of the man who should come nearest to guessing the run of the vessel for the next twenty-four hours. Next day, toward noon, the figures were all in the purser's hands in sealed envelopes. Smith was serene and happy, for he had been bribing the engineer. But another party won the prize! Smith said:

"Here, that won't do! He guessed two miles wider of the mark than I did."

The purser said, "Mr. Smith, you missed it further than any man on board. We traveled two hundred and eight miles yesterday."

"Well, sir," said Smith, "that's just where I've got you, for I guessed two hundred and nine. If you'll look at my figgers again you'll find a 2 and two 0's, which stands for 200, don't it?—and after 'em you'll find a 9 (2009), which stands for two hundred and nine. I reckon I'll take that money, if you please."

The Gould & Curry claim comprised twelve hundred feet, and it all belonged originally to the two men whose names it bears. Mr. Curry owned two thirds of it—and he said that he sold it out for twenty-five hundred dollars in cash, and an old plug horse that ate up his market value in hay and barley in seventeen days by the watch. And he said that Gould sold out for a pair of second-hand government blankets and a bottle of whisky that killed nine men in three hours, and that an unoffending stranger that smelt the cork was disabled for life. Four years afterward the mine thus disposed of was worth in the San Francisco market seven millions six hundred thousand dollars in gold coin.

In the early days a poverty-stricken Mexican who lived in a canyon directly back of Virginia City, had a stream of water as large as a man's wrist trickling from the hill-side on his premises. The Ophir Company segregated a hundred feet of their mine and traded it to him for the stream of water. The hundred feet proved to be the richest part of the entire mine; four years after the swap, its market value (including its mill) was \$1,500,000.

An individual who owned twenty feet in the Ophir mine before its great riches were revealed to men, traded it for a horse, and a very sorry looking brute he was, too. A year or so afterward, when Ophir stock went up to \$3,000 a foot, this man, who had not a cent, used to say he was the most startling example of magnificence and misery the world had ever seen—because he was able to ride a sixty-thousand-dollar horse—yet could not scrape up cash enough to buy a saddle, and was obliged to borrow one or ride bareback. He said if fortune were to give him another sixty-thousand-dollar horse it would ruin him.



A youth of nineteen, who was a telegraph operator in Virginia on a salary of a hundred dollars a month, and who, when he could not make out German names in the list of San Francisco steamer arrivals, used to ingeniously select and supply substitutes for them out of an old Berlin city directory, made himself rich by watching the mining telegrams that passed through his hands and buying and selling stocks accordingly, through a friend in San Francisco. Once when a private dispatch was sent from Virginia announcing a rich strike in a prominent mine and advising that the matter be kept secret till a large amount of the stock could be secured, he bought forty "feet" of the stock at twenty dollars a foot, and afterward sold half of it at eight hundred dollars a foot and the rest at double that figure. Within three months he was worth \$150,000, and had resigned his telegraphic position.

Another telegraph operator who had been discharged by the company for divulging the secrets of the office, agreed with a moneyed man in San Francisco to furnish him the result of a great Virginia mining lawsuit within an hour after its private reception by the parties to it in San Francisco. For this he was to have a large percentage of the profits on purchases and sales made on it by his fellow-conspirator. So he went, disguised as a teamster, to a little wayside telegraph office in the mountains, got acquainted with the operator, and sat in the office day after day, smoking his pipe, complaining that his team was fagged out and unable to travel—and meantime listening to the dispatches as they passed clicking through the machine from Virginia. Finally the private dispatch announcing the result of the lawsuit sped over the wires, and as soon as he heard it he telegraphed his friend in San Francisco:

"Am tired waiting. Shall sell the team and go home."

It was the signal agreed upon. The word "waiting" left out, would have signified that the suit had gone the other way.

The mock teamster's friend picked up a deal of the mining stock, at low figures, before the news became public, and a fortune was the result.

For a long time after one of the great Virginia mines had been incorporated, about fifty feet of the original location were still in the hands of a man who had never signed the incorporation papers. The stock became very valuable, and every effort was made to find this man, but he had disappeared. Once it was heard that he was in New York, and one or two speculators went east but failed to find him. Once the news came that he was in the Bermudas, and straightway a speculator or two hurried east and sailed for Bermuda—but he was not there. Finally he was heard of in Mexico, and a friend of his, a bar-keeper on a salary, scraped together a little money and sought him out, bought his "feet" for a hundred dollars, returned and sold the property for \$75,000.

But why go on? The traditions of Silverland are filled with instances like these, and I would never get through enumerating them were I to attempt do it. I only desired to give, the reader an idea of a peculiarity of the "flush times" which I could not present so strikingly in any other way, and which

some mention of was necessary to a realizing comprehension of the time and the country.

I was personally acquainted with the majority of the nabobs I have referred to, and so, for old acquaintance sake, I have shifted their occupations and experiences around in such a way as to keep the Pacific public from recognizing these once notorious men. No longer notorious, for the majority of them have drifted back into poverty and obscurity again.

In Nevada there used to be current the story of an adventure of two of her nabobs, which may or may not have occurred. I give it for what it is worth:

Col. Jim had seen somewhat of the world, and knew more or less of its ways; but Col. Jack was from the back settlements of the States, had led a life of arduous toil, and had never seen a city. These two, blessed with sudden wealth, projected a visit to New York,—Col. Jack to see the sights, and Col. Jim to guard his unsophistication from misfortune. They reached San Francisco in the night, and sailed in the morning. Arrived in New York, Col. Jack said:

"I've heard tell of carriages all my life, and now I mean to have a ride in one; I don't care what it costs. Come along."

They stepped out on the sidewalk, and Col. Jim called a stylish barouche. But Col. Jack said:

"No, sir! None of your cheap-John turn-outs for me. I'm here to have a good time, and money ain't any object. I mean to have the nobbiest rig that's going. Now here comes the very trick. Stop that yaller one with the pictures on it—don't you fret—I'll stand all the expenses myself."

So Col. Jim stopped an empty omnibus, and they got in. Said Col. Jack:

"Ain't it gay, though? Oh, no, I reckon not! Cushions, and windows, and pictures, till you can't rest. What would the boys say if they could see us cutting a swell like this in New York? By George, I wish they could see us."

Then he put his head out of the window, and shouted to the driver:

"Say, Johnny, this suits me!—suits yours truly, you bet, you! I want this shebang all day. I'm on it, old man! Let 'em out! Make 'em go! We'll make it

all right with you, sonny!"

The driver passed his hand through the strap-hole, and tapped for his fare—it was before the gongs came into common use. Col. Jack took the hand, and shook it cordially. He said:



"You twig me, old pard! All right between gents. Smell of that, and see how you like it!"

And he put a twenty-dollar gold piece in the driver's hand. After a moment the driver said he could not make change.

"Bother the change! Ride it out. Put it in your pocket."

Then to Col. Jim, with a sounding slap on his thigh:

"Ain't it style, though? Hanged if I don't hire this thing every day for a week."

The omnibus stopped, and a young lady got in. Col. Jack stared a moment, then nudged Col. Jim with his elbow:

"Don't say a word," he whispered. "Let her ride, if she wants to. Gracious, there's room enough."

The young lady got out her porte-monnaie, and handed her fare to Col. Jack.

"What's this for?" said he.

"Give it to the driver, please."

"Take back your money, madam. We can't allow it. You're welcome to ride here as long as you please, but this shebang's chartered, and we can't let you pay a cent."



The girl shrunk into a corner, bewildered. An old lady with a basket climbed in, and proffered her fare.

"Excuse me," said Col. Jack. "You're perfectly welcome here, madam, but we can't allow you to pay. Set right down there, mum, and don't you be the least uneasy. Make yourself just as free as if you was in your own turn-out."

Within two minutes, three gentlemen, two fat women, and a couple of children, entered.

"Come right along, friends," said Col. Jack; "don't mind us. This is a free blow-out." Then he whispered to Col. Jim,

"New York ain't no sociable place, I don't reckon—it ain't no name for it!"

He resisted every effort to pass fares to the driver, and made everybody cordially welcome. The situation dawned on the people, and they pocketed their money, and delivered themselves up to covert enjoyment of the episode. Half a dozen more passengers entered.

"Oh, there's plenty of room," said Col. Jack. "Walk right in, and make yourselves at home. A blow-out ain't worth anything as a blow-out, unless a body has company." Then in a whisper to Col. Jim: "But ain't these New Yorkers friendly? And ain't they cool about it, too? Icebergs ain't anywhere. I reckon they'd tackle a hearse, if it was going their way."

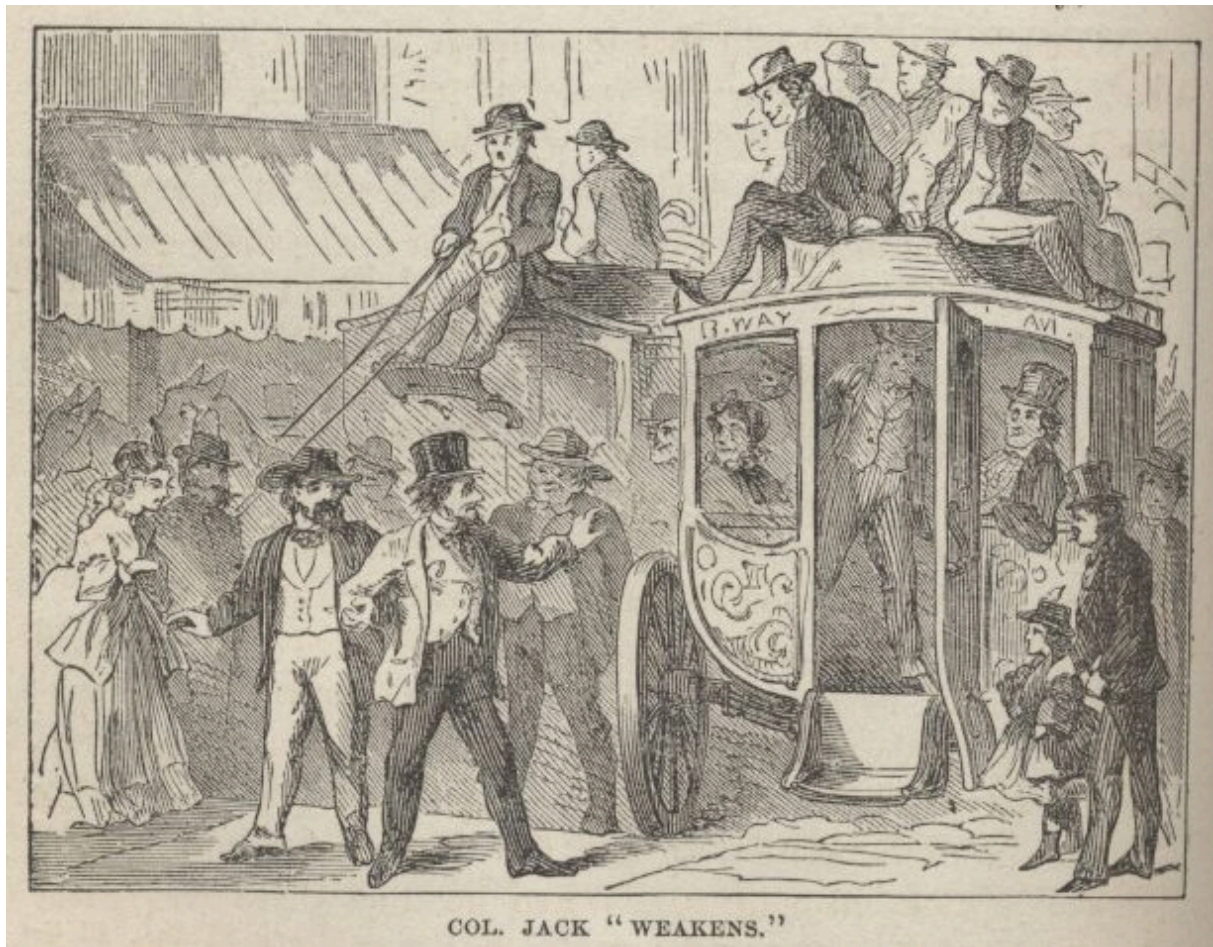
More passengers got in; more yet, and still more. Both seats were filled, and a file of men were standing up, holding on to the cleats overhead. Parties with baskets and bundles were climbing up on the roof. Half-suppressed laughter rippled up from all sides.

"Well, for clean, cool, out-and-out cheek, if this don't bang anything that ever I saw, I'm an Injun!" whispered Col. Jack.

A Chinaman crowded his way in.

"I weaken!" said Col. Jack. "Hold on, driver! Keep your seats, ladies, and gents. Just make yourselves free—everything's paid for. Driver, rustle these folks around as long as they're a mind to go—friends of ours, you know. Take them everywheres—and if you want more money, come to the St.

Nicholas, and we'll make it all right. Pleasant journey to you, ladies and gents—go it just as long as you please—it shan't cost you a cent!"



The two comrades got out, and Col. Jack said:

"Jimmy, it's the sociablest place I ever saw. The Chinaman waltzed in as comfortable as anybody. If we'd staid awhile, I reckon we'd had some niggers. B' George, we'll have to barricade our doors to-night, or some of these ducks will be trying to sleep with us."

CHAPTER XLVII.

Somebody has said that in order to know a community, one must observe the style of its funerals and know what manner of men they bury with most ceremony. I cannot say which class we buried with most eclat in our "flush times," the distinguished public benefactor or the distinguished rough—possibly the two chief grades or grand divisions of society honored their illustrious dead about equally; and hence, no doubt the philosopher I have quoted from would have needed to see two representative funerals in Virginia before forming his estimate of the people.

There was a grand time over Buck Fanshaw when he died. He was a representative citizen. He had "killed his man"—not in his own quarrel, it is true, but in defence of a stranger unfairly beset by numbers. He had kept a sumptuous saloon. He had been the proprietor of a dashing helpmeet whom he could have discarded without the formality of a divorce. He had held a high position in the fire department and been a very Warwick in politics. When he died there was great lamentation throughout the town, but especially in the vast bottom-stratum of society.

On the inquest it was shown that Buck Fanshaw, in the delirium of a wasting typhoid fever, had taken arsenic, shot himself through the body, cut his throat, and jumped out of a four-story window and broken his neck—and after due deliberation, the jury, sad and tearful, but with intelligence unblinded by its sorrow, brought in a verdict of death "by the visitation of God." What could the world do without juries?

Prodigious preparations were made for the funeral. All the vehicles in town were hired, all the saloons put in mourning, all the municipal and fire-company flags hung at half-mast, and all the firemen ordered to muster in uniform and bring their machines duly draped in black. Now—let us remark in parenthesis—as all the peoples of the earth had representative adventurers in the Silverland, and as each adventurer had brought the slang of his nation or his locality with him, the combination made the slang of Nevada the richest and the most infinitely varied and copious that had ever existed

anywhere in the world, perhaps, except in the mines of California in the "early days." Slang was the language of Nevada. It was hard to preach a sermon without it, and be understood. Such phrases as "You bet!" "Oh, no, I reckon not!" "No Irish need apply," and a hundred others, became so common as to fall from the lips of a speaker unconsciously—and very often when they did not touch the subject under discussion and consequently failed to mean anything.

After Buck Fanshaw's inquest, a meeting of the short-haired brotherhood was held, for nothing can be done on the Pacific coast without a public meeting and an expression of sentiment. Regretful resolutions were passed and various committees appointed; among others, a committee of one was deputed to call on the minister, a fragile, gentle, spiritual new fledgling from an Eastern theological seminary, and as yet unacquainted with the ways of the mines. The committeeman, "Scotty" Briggs, made his visit; and in after days it was worth something to hear the minister tell about it. Scotty was a stalwart rough, whose customary suit, when on weighty official business, like committee work, was a fire helmet, flaming red flannel shirt, patent leather belt with spanner and revolver attached, coat hung over arm, and pants stuffed into boot tops. He formed something of a contrast to the pale theological student. It is fair to say of Scotty, however, in passing, that he had a warm heart, and a strong love for his friends, and never entered into a quarrel when he could reasonably keep out of it. Indeed, it was commonly said that whenever one of Scotty's fights was investigated, it always turned out that it had originally been no affair of his, but that out of native good-heartedness he had dropped in of his own accord to help the man who was getting the worst of it. He and Buck Fanshaw were bosom friends, for years, and had often taken adventurous "pot-luck" together. On one occasion, they had thrown off their coats and taken the weaker side in a fight among strangers, and after gaining a hard-earned victory, turned and found that the men they were helping had deserted early, and not only that, but had stolen their coats and made off with them! But to return to Scotty's visit to the minister. He was on a sorrowful mission, now, and his face was the picture of woe. Being admitted to the presence he sat down before the clergyman, placed his fire-hat on an unfinished manuscript sermon under the minister's nose, took from it a red silk handkerchief, wiped his brow and heaved a sigh of dismal impressiveness, explanatory of his business.

He choked, and even shed tears; but with an effort he mastered his voice and said in lugubrious tones:

"Are you the duck that runs the gospel-mill next door?"

"Am I the—pardon me, I believe I do not understand?"

With another sigh and a half-sob, Scotty rejoined:

"Why you see we are in a bit of trouble, and the boys thought maybe you would give us a lift, if we'd tackle you—that is, if I've got the rights of it and you are the head clerk of the doxology-works next door."

"I am the shepherd in charge of the flock whose fold is next door."

"The which?"

"The spiritual adviser of the little company of believers whose sanctuary adjoins these premises."



Scotty scratched his head, reflected a moment, and then said:

"You ruther hold over me, pard. I reckon I can't call that hand. Ante and pass the buck."

"How? I beg pardon. What did I understand you to say?"

"Well, you've ruther got the bulge on me. Or maybe we've both got the bulge, somehow. You don't smoke me and I don't smoke you. You see, one of the boys has passed in his checks and we want to give him a good send-off, and so the thing I'm on now is to roust out somebody to jerk a little chin-music for us and waltz him through handsome."

"My friend, I seem to grow more and more bewildered. Your observations are wholly incomprehensible to me. Cannot you simplify them in some way? At first I thought perhaps I understood you, but I grope now. Would it not

expedite matters if you restricted yourself to categorical statements of fact unencumbered with obstructing accumulations of metaphor and allegory?"

Another pause, and more reflection. Then, said Scotty:

"I'll have to pass, I judge."

"How?"

"You've raised me out, pard."

"I still fail to catch your meaning."

"Why, that last lead of yours is too many for me—that's the idea. I can't neither-trump nor follow suit."

The clergyman sank back in his chair perplexed. Scotty leaned his head on his hand and gave himself up to thought.

Presently his face came up, sorrowful but confident.

"I've got it now, so's you can savvy," he said. "What we want is a gospel-sharp. See?"

"A what?"

"Gospel-sharp. Parson."

"Oh! Why did you not say so before? I am a clergyman—a parson."

"Now you talk! You see my blind and straddle it like a man. Put it there!"—extending a brawny paw, which closed over the minister's small hand and gave it a shake indicative of fraternal sympathy and fervent gratification.

"Now we're all right, pard. Let's start fresh. Don't you mind my snuffling a little—becuz we're in a power of trouble. You see, one of the boys has gone up the flume—"

"Gone where?"

"Up the flume—throwed up the sponge, you understand."

"Thrown up the sponge?"

"Yes—kicked the bucket—"

"Ah—has departed to that mysterious country from whose bourne no traveler returns."

"Return! I reckon not. Why pard, he's dead!"

"Yes, I understand."

"Oh, you do? Well I thought maybe you might be getting tangled some more. Yes, you see he's dead again—"

"Again? Why, has he ever been dead before?"

"Dead before? No! Do you reckon a man has got as many lives as a cat? But you bet you he's awful dead now, poor old boy, and I wish I'd never seen this day. I don't want no better friend than Buck Fanshaw. I knowed him by the back; and when I know a man and like him, I freeze to him—you hear me. Take him all round, pard, there never was a bullier man in the mines. No man ever knowed Buck Fanshaw to go back on a friend. But it's all up, you know, it's all up. It ain't no use. They've scooped him."

"Scooped him?"

"Yes—death has. Well, well, well, we've got to give him up. Yes indeed. It's a kind of a hard world, after all, ain't it? But pard, he was a rustler! You ought to seen him get started once. He was a bully boy with a glass eye! Just spit in his face and give him room according to his strength, and it was just beautiful to see him peel and go in. He was the worst son of a thief that ever drawed breath. Pard, he was on it! He was on it bigger than an Injun!"

"On it? On what?"

"On the shoot. On the shoulder. On the fight, you understand. He didn't give a continental for any body. Beg your pardon, friend, for coming so near saying a cuss-word—but you see I'm on an awful strain, in this palaver, on account of having to cramp down and draw everything so mild. But we've got to give him up. There ain't any getting around that, I don't reckon. Now if we can get you to help plant him—"

"Preach the funeral discourse? Assist at the obsequies?"

"Obs'quies is good. Yes. That's it—that's our little game. We are going to get the thing up regardless, you know. He was always nifty himself, and so you bet you his funeral ain't going to be no slouch—solid silver door-plate on his coffin, six plumes on the hearse, and a nigger on the box in a biled shirt and a plug hat—how's that for high? And we'll take care of you, pard. We'll fix you all right. There'll be a kerridge for you; and whatever you want, you just 'scape out and we'll 'tend to it. We've got a shebang fixed up for you to stand behind, in No. 1's house, and don't you be afraid. Just go in and toot your horn, if you don't sell a clam. Put Buck through as bully as you can, pard, for anybody that knowed him will tell you that he was one of the whitest men that was ever in the mines. You can't draw it too strong. He never could stand it to see things going wrong. He's done more to make this town quiet and peaceable than any man in it. I've seen him lick four Greasers in eleven minutes, myself. If a thing wanted regulating, he warn't a man to go browsing around after somebody to do it, but he would prance in and regulate it himself. He warn't a Catholic. Scasely. He was down on 'em. His word was, 'No Irish need apply!' But it didn't make no difference about that when it came down to what a man's rights was—and so, when some roughs jumped the Catholic bone-yard and started in to stake out town-lots in it he went for 'em! And he cleaned 'em, too! I was there, pard, and I seen it myself."



"That was very well indeed—at least the impulse was—whether the act was strictly defensible or not. Had deceased any religious convictions? That is to say, did he feel a dependence upon, or acknowledge allegiance to a higher power?"

More reflection.

"I reckon you've stumped me again, pard. Could you say it over once more, and say it slow?"

"Well, to simplify it somewhat, was he, or rather had he ever been connected with any organization sequestered from secular concerns and devoted to self-sacrifice in the interests of morality?"

"All down but nine—set 'em up on the other alley, pard."

"What did I understand you to say?"

"Why, you're most too many for me, you know. When you get in with your left I hunt grass every time. Every time you draw, you fill; but I don't seem to have any luck. Lets have a new deal."

"How? Begin again?"

"That's it."

"Very well. Was he a good man, and—"

"There—I see that; don't put up another chip till I look at my hand. A good man, says you? Pard, it ain't no name for it. He was the best man that ever—pard, you would have doted on that man. He could lam any galoot of his inches in America. It was him that put down the riot last election before it got a start; and everybody said he was the only man that could have done it. He waltzed in with a spanner in one hand and a trumpet in the other, and sent fourteen men home on a shutter in less than three minutes. He had that riot all broke up and prevented nice before anybody ever got a chance to strike a blow. He was always for peace, and he would have peace—he could not stand disturbances. Pard, he was a great loss to this town. It would please the boys if you could chip in something like that and do him justice. Here once when the Micks got to throwing stones through the Methodis' Sunday school windows, Buck Fanshaw, all of his own notion, shut up his saloon and took a couple of six-shooters and mounted guard over the Sunday school. Says he, 'No Irish need apply!' And they didn't. He was the bulliest man in the mountains, pard! He could run faster, jump higher, hit harder, and hold more tangle-foot whisky without spilling it than any man in seventeen counties. Put that in, pard—it'll please the boys more than anything you could say. And you can say, pard, that he never shook his mother."



"Never shook his mother?"

"That's it—any of the boys will tell you so."

"Well, but why should he shake her?"

"That's what I say—but some people does."

"Not people of any repute?"

"Well, some that averages pretty so-so."

"In my opinion the man that would offer personal violence to his own mother, ought to—"

"Cheese it, pard; you've banked your ball clean outside the string. What I was a drivin' at, was, that he never throwed off on his mother—don't you see? No indeedy. He give her a house to live in, and town lots, and plenty of money; and he looked after her and took care of her all the time; and when

she was down with the small-pox I'm d—d if he didn't set up nights and nuss her himself! Beg your pardon for saying it, but it hopped out too quick for yours truly.

"You've treated me like a gentleman, pard, and I ain't the man to hurt your feelings intentional. I think you're white. I think you're a square man, pard. I like you, and I'll lick any man that don't. I'll lick him till he can't tell himself from a last year's corpse! Put it there!" [Another fraternal hand-shake—and exit.]

The obsequies were all that "the boys" could desire. Such a marvel of funeral pomp had never been seen in Virginia. The plumed hearse, the dirge-breathing brass bands, the closed marts of business, the flags drooping at half mast, the long, plodding procession of uniformed secret societies, military battalions and fire companies, draped engines, carriages of officials, and citizens in vehicles and on foot, attracted multitudes of spectators to the sidewalks, roofs and windows; and for years afterward, the degree of grandeur attained by any civic display in Virginia was determined by comparison with Buck Fanshaw's funeral.

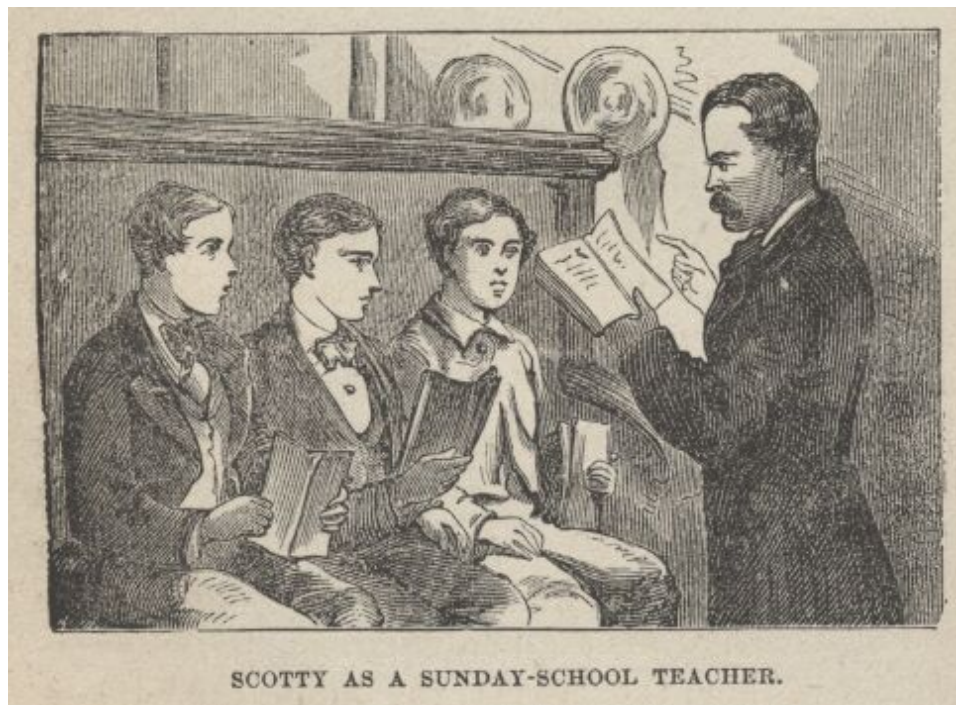
Scotty Briggs, as a pall-bearer and a mourner, occupied a prominent place at the funeral, and when the sermon was finished and the last sentence of the prayer for the dead man's soul ascended, he responded, in a low voice, but with feelings:

"AMEN. No Irish need apply."

As the bulk of the response was without apparent relevancy, it was probably nothing more than a humble tribute to the memory of the friend that was gone; for, as Scotty had once said, it was "his word."

Scotty Briggs, in after days, achieved the distinction of becoming the only convert to religion that was ever gathered from the Virginia roughs; and it transpired that the man who had it in him to espouse the quarrel of the weak out of inborn nobility of spirit was no mean timber whereof to construct a Christian. The making him one did not warp his generosity or diminish his courage; on the contrary it gave intelligent direction to the one and a broader field to the other.

If his Sunday-school class progressed faster than the other classes, was it matter for wonder? I think not. He talked to his pioneer small-fry in a language they understood! It was my large privilege, a month before he died, to hear him tell the beautiful story of Joseph and his brethren to his class "without looking at the book." I leave it to the reader to fancy what it was like, as it fell, riddled with slang, from the lips of that grave, earnest teacher, and was listened to by his little learners with a consuming interest that showed that they were as unconscious as he was that any violence was being done to the sacred proprieties!



SCOTTY AS A SUNDAY-SCHOOL TEACHER.

CHAPTER XLVIII.

The first twenty-six graves in the Virginia cemetery were occupied by murdered men. So everybody said, so everybody believed, and so they will always say and believe. The reason why there was so much slaughtering done, was, that in a new mining district the rough element predominates, and a person is not respected until he has "killed his man." That was the very expression used.

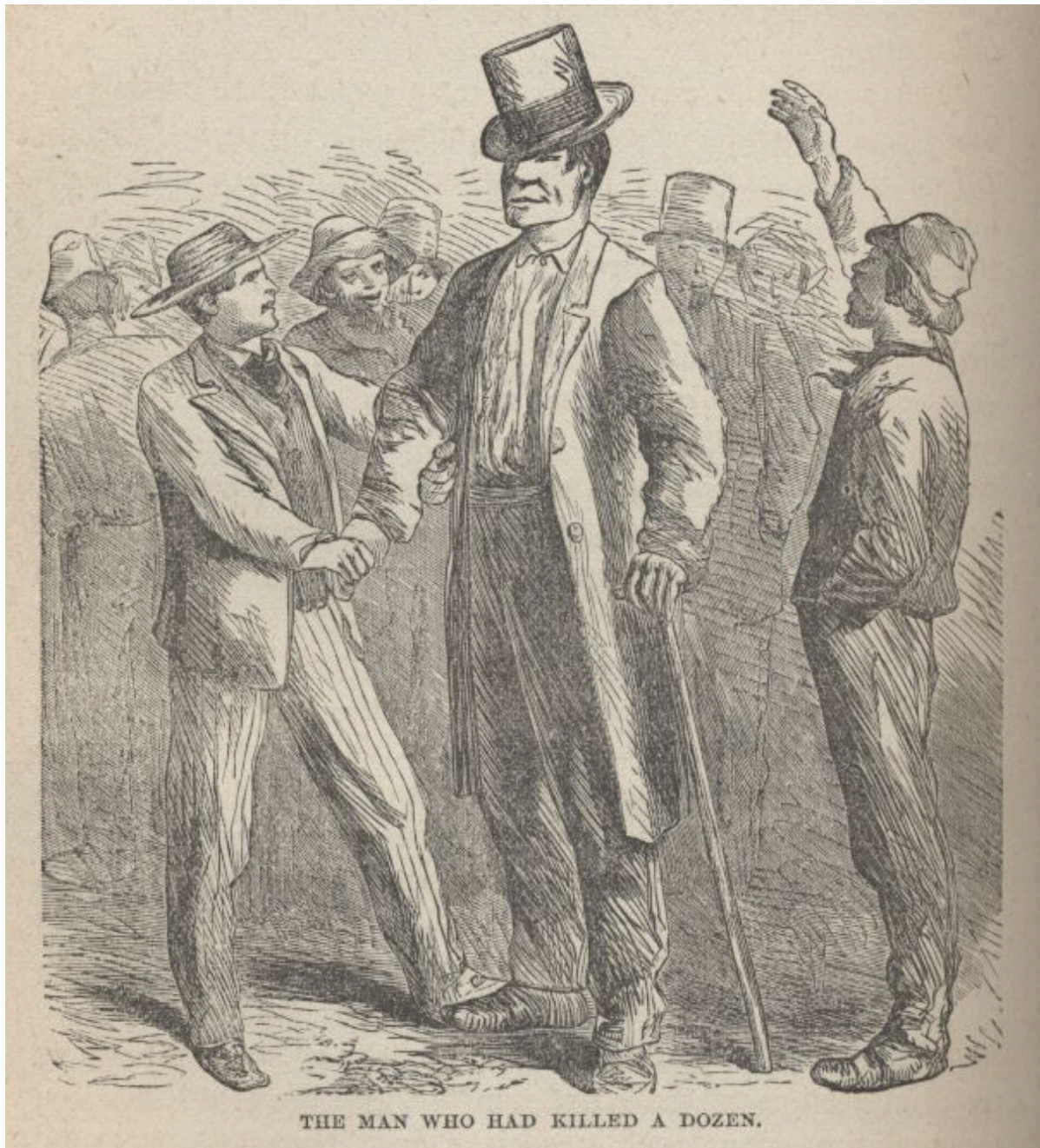
If an unknown individual arrived, they did not inquire if he was capable, honest, industrious, but—had he killed his man? If he had not, he gravitated to his natural and proper position, that of a man of small consequence; if he had, the cordiality of his reception was graduated according to the number of his dead. It was tedious work struggling up to a position of influence with bloodless hands; but when a man came with the blood of half a dozen men on his soul, his worth was recognized at once and his acquaintance sought.

In Nevada, for a time, the lawyer, the editor, the banker, the chief desperado, the chief gambler, and the saloon keeper, occupied the same level in society, and it was the highest. The cheapest and easiest way to become an influential man and be looked up to by the community at large, was to stand behind a bar, wear a cluster-diamond pin, and sell whisky. I am not sure but that the saloon-keeper held a shade higher rank than any other member of society. His opinion had weight. It was his privilege to say how the elections should go. No great movement could succeed without the countenance and direction of the saloon-keepers. It was a high favor when the chief saloon-keeper consented to serve in the legislature or the board of aldermen.

Youthful ambition hardly aspired so much to the honors of the law, or the army and navy as to the dignity of proprietorship in a saloon.

To be a saloon-keeper and kill a man was to be illustrious. Hence the reader will not be surprised to learn that more than one man was killed in Nevada under hardly the pretext of provocation, so impatient was the slayer to achieve reputation and throw off the galling sense of being held in indifferent repute by his associates. I knew two youths who tried to "kill

their men" for no other reason—and got killed themselves for their pains. "There goes the man that killed Bill Adams" was higher praise and a sweeter sound in the ears of this sort of people than any other speech that admiring lips could utter.



The men who murdered Virginia's original twenty-six cemetery-occupants were never punished. Why? Because Alfred the Great, when he invented trial by jury and knew that he had admirably framed it to secure justice in his age of the world, was not aware that in the nineteenth century the condition of things would be so entirely changed that unless he rose from the grave and altered the jury plan to meet the emergency, it would prove the most ingenious and infallible agency for defeating justice that human wisdom could contrive. For how could he imagine that we simpletons would go on using his jury plan after circumstances had stripped it of its usefulness, any more than he could imagine that we would go on using his candle-clock after we had invented chronometers? In his day news could not travel fast, and hence he could easily find a jury of honest, intelligent men who had not heard of the case they were called to try—but in our day of telegraphs and newspapers his plan compels us to swear in juries composed of fools and rascals, because the system rigidly excludes honest men and men of brains.

I remember one of those sorrowful farces, in Virginia, which we call a jury trial. A noted desperado killed Mr. B., a good citizen, in the most wanton and cold-blooded way. Of course the papers were full of it, and all men capable of reading, read about it. And of course all men not deaf and dumb and idiotic, talked about it. A jury-list was made out, and Mr. B. L., a prominent banker and a valued citizen, was questioned precisely as he would have been questioned in any court in America:

"Have you heard of this homicide?"

"Yes."

"Have you held conversations upon the subject?"

"Yes."

"Have you formed or expressed opinions about it?"

"Yes."

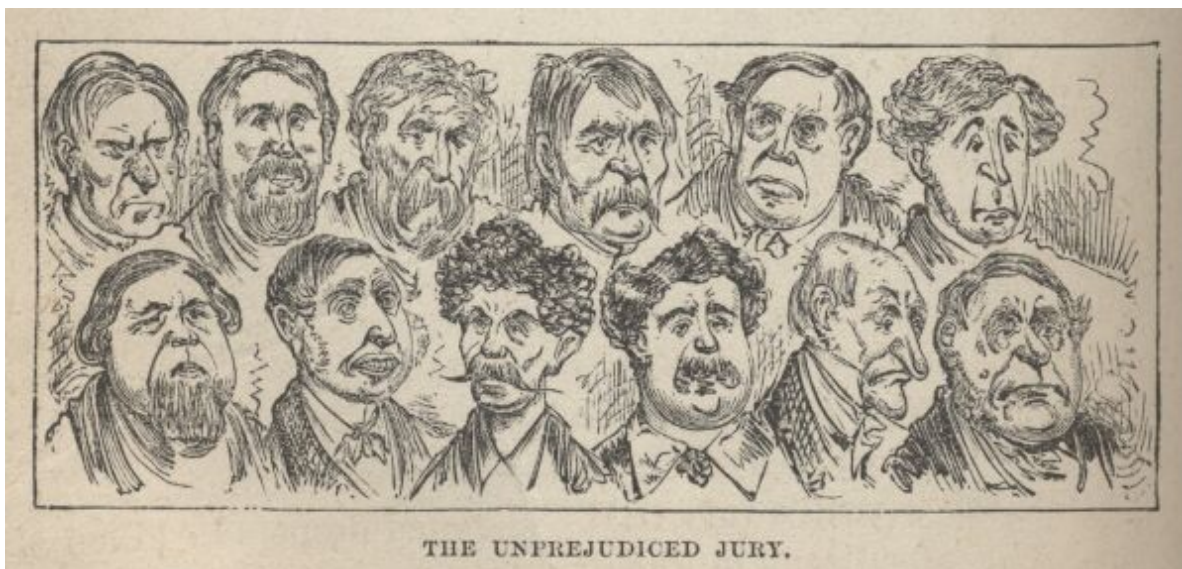
"Have you read the newspaper accounts of it?"

"Yes."

"We do not want you."

A minister, intelligent, esteemed, and greatly respected; a merchant of high character and known probity; a mining superintendent of intelligence and unblemished reputation; a quartz mill owner of excellent standing, were all questioned in the same way, and all set aside. Each said the public talk and the newspaper reports had not so biased his mind but that sworn testimony would overthrow his previously formed opinions and enable him to render a verdict without prejudice and in accordance with the facts. But of course such men could not be trusted with the case. Ignoramuses alone could mete out unsullied justice.

When the peremptory challenges were all exhausted, a jury of twelve men was impaneled—a jury who swore they had neither heard, read, talked about nor expressed an opinion concerning a murder which the very cattle in the corrals, the Indians in the sage-brush and the stones in the streets were cognizant of! It was a jury composed of two desperadoes, two low beer-house politicians, three bar-keepers, two ranchmen who could not read, and three dull, stupid, human donkeys! It actually came out afterward, that one of these latter thought that incest and arson were the same thing.



The verdict rendered by this jury was, Not Guilty. What else could one expect?

The jury system puts a ban upon intelligence and honesty, and a premium upon ignorance, stupidity and perjury. It is a shame that we must continue to use a worthless system because it was good a thousand years ago. In this age, when a gentleman of high social standing, intelligence and probity, swears that testimony given under solemn oath will outweigh, with him, street talk and newspaper reports based upon mere hearsay, he is worth a hundred jurymen who will swear to their own ignorance and stupidity, and justice would be far safer in his hands than in theirs. Why could not the jury law be so altered as to give men of brains and honesty and equal chance with fools and miscreants? Is it right to show the present favoritism to one class of men and inflict a disability on another, in a land whose boast is that all its citizens are free and equal? I am a candidate for the legislature. I desire to tamper with the jury law. I wish to so alter it as to put a premium on intelligence and character, and close the jury box against idiots, blacklegs, and people who do not read newspapers. But no doubt I shall be defeated—every effort I make to save the country "misses fire."

My idea, when I began this chapter, was to say something about desperadoism in the "flush times" of Nevada. To attempt a portrayal of that era and that land, and leave out the blood and carnage, would be like portraying Mormondom and leaving out polygamy. The desperado stalked the streets with a swagger graded according to the number of his homicides, and a nod of recognition from him was sufficient to make a humble admirer happy for the rest of the day. The deference that was paid to a desperado of wide reputation, and who "kept his private graveyard," as the phrase went, was marked, and cheerfully accorded. When he moved along the sidewalk in his excessively long-tailed frock-coat, shiny stump-toed boots, and with dainty little slouch hat tipped over left eye, the small-fry roughs made room for his majesty; when he entered the restaurant, the waiters deserted bankers and merchants to overwhelm him with obsequious service; when he shouldered his way to a bar, the shouldered parties wheeled indignantly, recognized him, and—apologized.

They got a look in return that froze their marrow, and by that time a curled and breast-pinned bar keeper was beaming over the counter, proud of the established acquaintanceship that permitted such a familiar form of speech as:

"How're ye, Billy, old fel? Glad to see you. What'll you take—the old thing?"

The "old thing" meant his customary drink, of course.



The best known names in the Territory of Nevada were those belonging to these long-tailed heroes of the revolver. Orators, Governors, capitalists and leaders of the legislature enjoyed a degree of fame, but it seemed local and meagre when contrasted with the fame of such men as Sam Brown, Jack Williams, Billy Mulligan, Farmer Pease, Sugarfoot Mike, Pock Marked Jake, El Dorado Johnny, Jack McNabb, Joe McGee, Jack Harris, Six-fingered Pete, etc., etc. There was a long list of them. They were brave, reckless men, and traveled with their lives in their hands. To give them their due, they did their killing principally among themselves, and seldom

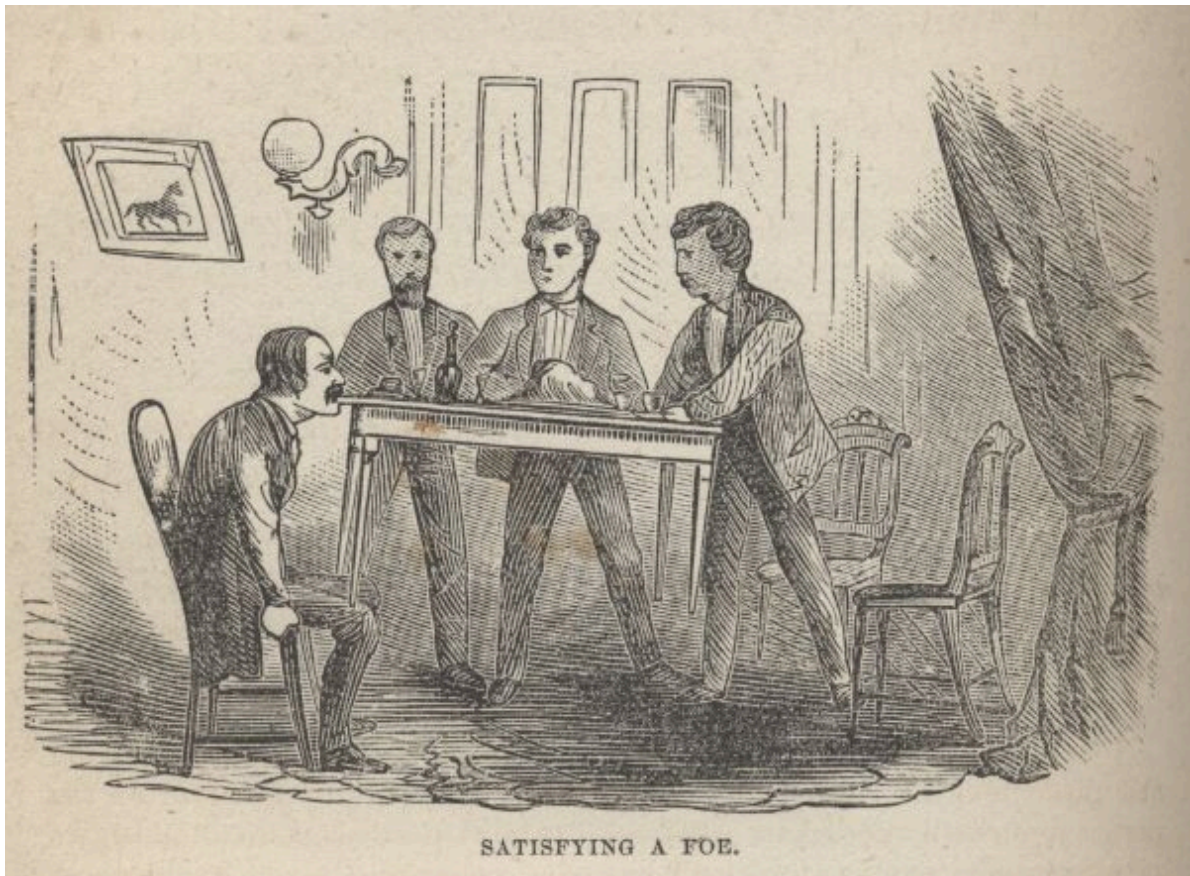
molested peaceable citizens, for they considered it small credit to add to their trophies so cheap a bauble as the death of a man who was "not on the shoot," as they phrased it. They killed each other on slight provocation, and hoped and expected to be killed themselves—for they held it almost shame to die otherwise than "with their boots on," as they expressed it.

I remember an instance of a desperado's contempt for such small game as a private citizen's life. I was taking a late supper in a restaurant one night, with two reporters and a little printer named—Brown, for instance—any name will do. Presently a stranger with a long-tailed coat on came in, and not noticing Brown's hat, which was lying in a chair, sat down on it. Little Brown sprang up and became abusive in a moment. The stranger smiled, smoothed out the hat, and offered it to Brown with profuse apologies couched in caustic sarcasm, and begged Brown not to destroy him. Brown threw off his coat and challenged the man to fight—abused him, threatened him, impeached his courage, and urged and even implored him to fight; and in the meantime the smiling stranger placed himself under our protection in mock distress. But presently he assumed a serious tone, and said:

"Very well, gentlemen, if we must fight, we must, I suppose. But don't rush into danger and then say I gave you no warning. I am more than a match for all of you when I get started. I will give you proofs, and then if my friend here still insists, I will try to accommodate him."

The table we were sitting at was about five feet long, and unusually cumbersome and heavy. He asked us to put our hands on the dishes and hold them in their places a moment—one of them was a large oval dish with a portly roast on it. Then he sat down, tilted up one end of the table, set two of the legs on his knees, took the end of the table between his teeth, took his hands away, and pulled down with his teeth till the table came up to a level position, dishes and all! He said he could lift a keg of nails with his teeth. He picked up a common glass tumbler and bit a semi-circle out of it. Then he opened his bosom and showed us a net-work of knife and bullet scars; showed us more on his arms and face, and said he believed he had bullets enough in his body to make a pig of lead. He was armed to the teeth. He closed with the remark that he was Mr.——of Cariboo—a celebrated name whereat we shook in our shoes. I would publish the name, but for the suspicion that he might come and carve me. He finally inquired if Brown

still thirsted for blood. Brown turned the thing over in his mind a moment, and then—asked him to supper.



With the permission of the reader, I will group together, in the next chapter, some samples of life in our small mountain village in the old days of desperadoism. I was there at the time. The reader will observe peculiarities in our official society; and he will observe also, an instance of how, in new countries, murders breed murders.

CHAPTER XLIX.

An extract or two from the newspapers of the day will furnish a photograph that can need no embellishment:

FATAL SHOOTING AFFRAY.—An affray occurred, last evening, in a billiard saloon on C street, between Deputy Marshal Jack Williams and Wm. Brown, which resulted in the immediate death of the latter. There had been some difficulty between the parties for several months.

An inquest was immediately held, and the following testimony adduced:

Officer GEO. BIRDSALL, sworn, says:—I was told Wm. Brown was drunk and was looking for Jack Williams; so soon as I heard that I started for the parties to prevent a collision; went into the billiard saloon; saw Billy Brown running around, saying if anybody had anything against him to show cause; he was talking in a boisterous manner, and officer Perry took him to the other end of the room to talk to him; Brown came back to me; remarked to me that he thought he was as good as anybody, and knew how to take care of himself; he passed by me and went to the bar; don't know whether he drank or not; Williams was at the end of the billiard-table, next to the stairway; Brown, after going to the bar, came back and said he was as good as any man in the world; he had then walked out to the end of the first billiard-table from the bar; I moved closer to them, supposing there would be a fight; as Brown drew his pistol I caught hold of it; he had fired one shot at Williams; don't know the effect of it; caught hold of him with one hand, and took hold of the pistol and turned it up; think he fired once after I caught hold of the pistol; I wrenched the pistol from him; walked to the end of the billiard-table and told a party that I had Brown's pistol, and to stop shooting; I think four shots were fired in all; after walking out, Mr. Foster remarked that Brown was shot dead.

Oh, there was no excitement about it—he merely "remarked" the small circumstance!

Four months later the following item appeared in the same paper (the Enterprise). In this item the name of one of the city officers above referred to (Deputy Marshal Jack Williams) occurs again:

ROBBERY AND DESPERATE AFFRAY.—On Tuesday night, a German named Charles Hurtzal, engineer in a mill at Silver City, came to this place, and visited the hurdy-gurdy house on B street. The music, dancing and Teutonic maidens awakened memories of Faderland until our German friend was carried away with rapture. He evidently had money, and was spending it freely. Late in the evening Jack Williams and Andy Blessington invited him down stairs to take a cup of coffee. Williams proposed a game of cards and went up stairs to procure a deck, but not finding any returned. On the stairway he met the German, and drawing his pistol knocked him down and rifled his pockets of some seventy dollars. Hurtzal dared give no alarm, as he was told, with a pistol at his head, if he made any noise or exposed them, they would blow his brains out. So effectually was he frightened that he made no complaint, until his friends forced him. Yesterday a warrant was issued, but the culprits had disappeared.

This efficient city officer, Jack Williams, had the common reputation of being a burglar, a highwayman and a desperado. It was said that he had several times drawn his revolver and levied money contributions on citizens at dead of night in the public streets of Virginia.

Five months after the above item appeared, Williams was assassinated while sitting at a card table one night; a gun was thrust through the crack of the door and Williams dropped from his chair riddled with balls. It was said, at the time, that Williams had been for some time aware that a party of his own sort (desperadoes) had sworn away his life; and it was generally believed among the people that Williams's friends and enemies would make the assassination memorable—and useful, too—by a wholesale destruction of each other.

It did not so happen, but still, times were not dull during the next twenty-four hours, for within that time a woman was killed by a pistol shot, a man was brained with a slung shot, and a man named Reeder was also disposed of permanently. Some matters in the Enterprise account of the killing of Reeder are worth nothing—especially the accommodating complaisance of a Virginia justice of the peace. The italics in the following narrative are mine:

MORE CUTTING AND SHOOTING.—The devil seems to have again broken loose in our town. Pistols and guns explode and knives gleam in our streets as in early times. When there has been a long season of quiet, people are slow to wet their hands in blood; but once blood is spilled, cutting and shooting come easy. Night before last Jack Williams was assassinated, and yesterday forenoon we had more bloody work, growing out of the killing of Williams, and on the same street in which he met his death. It appears that Tom Reeder, a friend of Williams, and George Gumbert were talking, at the meat market of the latter, about the killing of Williams the previous night, when Reeder said it was a most cowardly act to shoot a man in such a way, giving him "no show." Gumbert said that Williams had "as good a show as he gave Billy Brown," meaning the man killed by Williams last March. Reeder said it was a d—d lie, that Williams had no show at all. At this, Gumbert drew a knife and stabbed Reeder, cutting him in two places in the back. One stroke of the knife cut into the sleeve of Reeder's coat and passed downward in a slanting direction through his clothing, and entered his body at the small of the back; another blow struck more squarely, and made a much more dangerous wound. Gumbert gave himself up to the officers of justice, and was shortly after discharged by Justice Atwill, on his own recognizance, to appear for trial at six o'clock in the evening. In the meantime Reeder had been taken into the office of Dr. Owens, where his wounds were properly dressed. One of his wounds was considered quite dangerous, and it was thought by many that it would prove fatal. But being considerably under the influence of liquor, Reeder did not feel his wounds as he otherwise would, and he got up and went into the street. He went

to the meat market and renewed his quarrel with Gumbert, threatening his life. Friends tried to interfere to put a stop to the quarrel and get the parties away from each other. In the Fashion Saloon Reeder made threats against the life of Gumbert, saying he would kill him, and it is said that he requested the officers not to arrest Gumbert, as he intended to kill him. After these threats Gumbert went off and procured a double-barreled shot gun, loaded with buck-shot or revolver balls, and went after Reeder. Two or three persons were assisting him along the street, trying to get him home, and had him just in front of the store of Klopstock & Harris, when Gumbert came across toward him from the opposite side of the street with his gun. He came up within about ten or fifteen feet of Reeder, and called out to those with him to "look out! get out of the way!" and they had only time to heed the warning, when he fired. Reeder was at the time attempting to screen himself behind a large cask, which stood against the awning post of Klopstock & Harris's store, but some of the balls took effect in the lower part of his breast, and he reeled around forward and fell in front of the cask. Gumbert then raised his gun and fired the second barrel, which missed Reeder and entered the ground. At the time that this occurred, there were a great many persons on the street in the vicinity, and a number of them called out to Gumbert, when they saw him raise his gun, to "hold on," and "don't shoot!" The cutting took place about ten o'clock and the shooting about twelve. After the shooting the street was instantly crowded with the inhabitants of that part of the town, some appearing much excited and laughing—declaring that it looked like the "good old times of '60." Marshal Perry and officer Birdsall were near when the shooting occurred, and Gumbert was immediately arrested and his gun taken from him, when he was marched off to jail. Many persons who were attracted to the spot where this bloody work had just taken place, looked bewildered and seemed to be asking themselves what was to happen next, appearing in doubt as to whether the killing mania had reached its climax, or whether we were to turn in and have a grand killing spell, shooting whoever might have given us offence. It was whispered around that it was not all over yet—five or six more

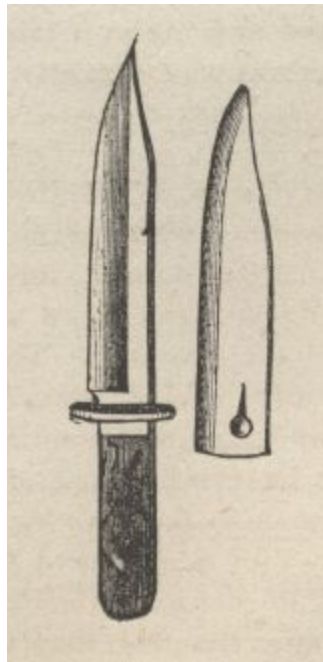
were to be killed before night. Reeder was taken to the Virginia City Hotel, and doctors called in to examine his wounds. They found that two or three balls had entered his right side; one of them appeared to have passed through the substance of the lungs, while another passed into the liver. Two balls were also found to have struck one of his legs. As some of the balls struck the cask, the wounds in Reeder's leg were probably from these, glancing downwards, though they might have been caused by the second shot fired. After being shot, Reeder said when he got on his feet—smiling as he spoke—"It will take better shooting than that to kill me." The doctors consider it almost impossible for him to recover, but as he has an excellent constitution he may survive, notwithstanding the number and dangerous character of the wounds he has received. The town appears to be perfectly quiet at present, as though the late stormy times had cleared our moral atmosphere; but who can tell in what quarter clouds are lowering or plots ripening?

Reeder—or at least what was left of him—survived his wounds two days! Nothing was ever done with Gumbert.

Trial by jury is the palladium of our liberties. I do not know what a palladium is, having never seen a palladium, but it is a good thing no doubt at any rate. Not less than a hundred men have been murdered in Nevada—perhaps I would be within bounds if I said three hundred—and as far as I can learn, only two persons have suffered the death penalty there. However, four or five who had no money and no political influence have been punished by imprisonment—one languished in prison as much as eight months, I think. However, I do not desire to be extravagant—it may have been less.

However, one prophecy was verified, at any rate. It was asserted by the desperadoes that one of their brethren (Joe McGee, a special policeman) was known to be the conspirator chosen by lot to assassinate Williams; and they also asserted that doom had been pronounced against McGee, and that he would be assassinated in exactly the same manner that had been adopted for the destruction of Williams—a prophecy which came true a year

later. After twelve months of distress (for McGee saw a fancied assassin in every man that approached him), he made the last of many efforts to get out of the country unwatched. He went to Carson and sat down in a saloon to wait for the stage—it would leave at four in the morning. But as the night waned and the crowd thinned, he grew uneasy, and told the bar-keeper that assassins were on his track. The bar-keeper told him to stay in the middle of the room, then, and not go near the door, or the window by the stove. But a fatal fascination seduced him to the neighborhood of the stove every now and then, and repeatedly the bar- keeper brought him back to the middle of the room and warned him to remain there. But he could not. At three in the morning he again returned to the stove and sat down by a stranger. Before the bar-keeper could get to him with another warning whisper, some one outside fired through the window and riddled McGee's breast with slugs, killing him almost instantly. By the same discharge the stranger at McGee's side also received attentions which proved fatal in the course of two or three days.



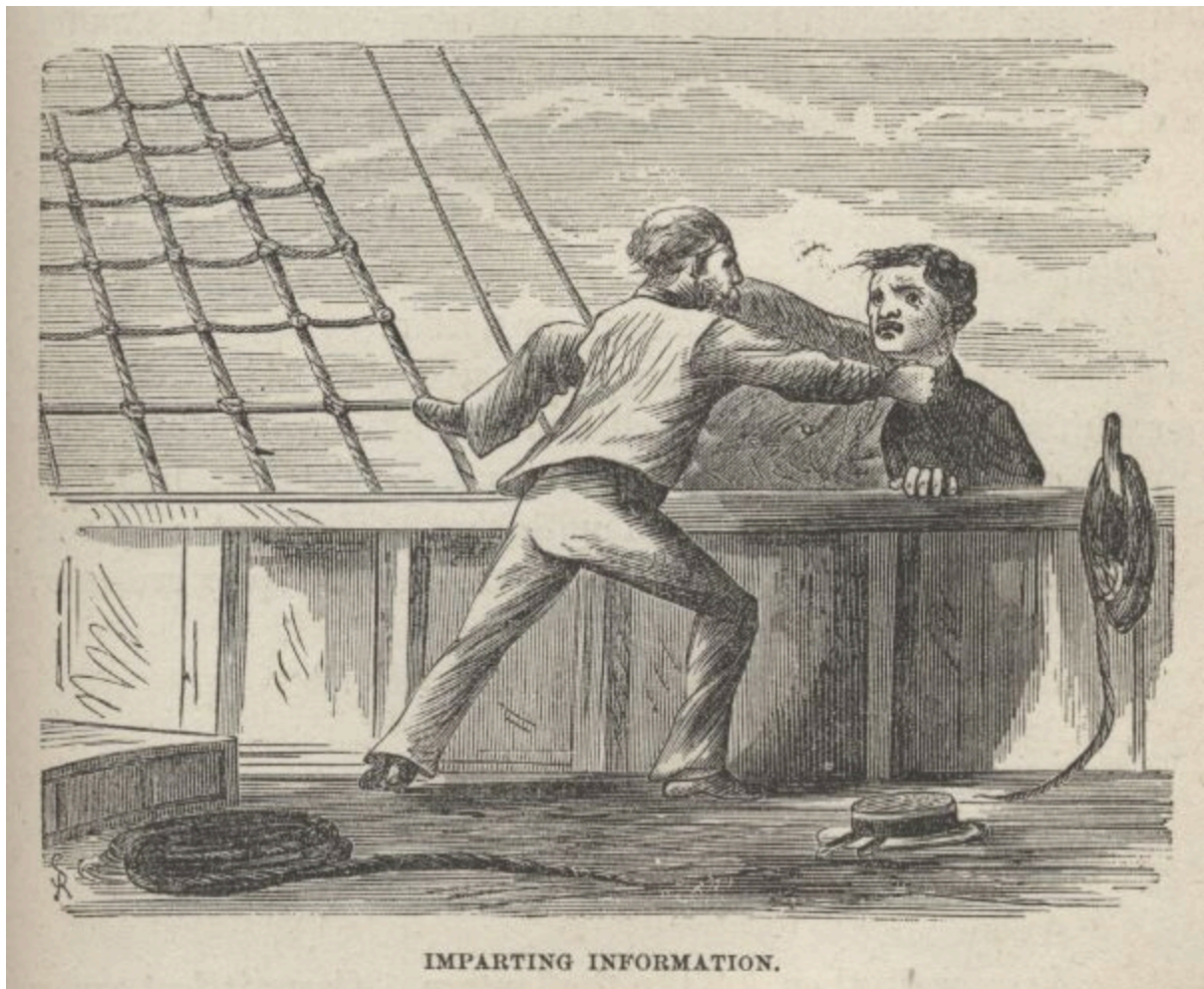
CHAPTER L.

These murder and jury statistics remind me of a certain very extraordinary trial and execution of twenty years ago; it is a scrap of history familiar to all old Californians, and worthy to be known by other peoples of the earth that love simple, straightforward justice unencumbered with nonsense. I would apologize for this digression but for the fact that the information I am about to offer is apology enough in itself. And since I digress constantly anyhow, perhaps it is as well to eschew apologies altogether and thus prevent their growing irksome.

Capt. Ned Blakely—that name will answer as well as any other fictitious one (for he was still with the living at last accounts, and may not desire to be famous)—sailed ships out of the harbor of San Francisco for many years. He was a stalwart, warm-hearted, eagle-eyed veteran, who had been a sailor nearly fifty years—a sailor from early boyhood. He was a rough, honest creature, full of pluck, and just as full of hard-headed simplicity, too. He hated trifling conventionalities—"business" was the word, with him. He had all a sailor's vindictiveness against the quips and quirks of the law, and steadfastly believed that the first and last aim and object of the law and lawyers was to defeat justice.

He sailed for the Chincha Islands in command of a guano ship. He had a fine crew, but his negro mate was his pet—on him he had for years lavished his admiration and esteem. It was Capt. Ned's first voyage to the Chinchas, but his fame had gone before him—the fame of being a man who would fight at the dropping of a handkerchief, when imposed upon, and would stand no nonsense. It was a fame well earned. Arrived in the islands, he found that the staple of conversation was the exploits of one Bill Noakes, a bully, the mate of a trading ship. This man had created a small reign of terror there. At nine o'clock at night, Capt. Ned, all alone, was pacing his deck in the starlight. A form ascended the side, and approached him. Capt. Ned said:

"Who goes there?"



"I'm Bill Noakes, the best man in the islands."

"What do you want aboard this ship?"

"I've heard of Capt. Ned Blakely, and one of us is a better man than 'tother—I'll know which, before I go ashore."

"You've come to the right shop—I'm your man. I'll learn you to come aboard this ship without an invite."

He seized Noakes, backed him against the mainmast, pounded his face to a pulp, and then threw him overboard.

Noakes was not convinced. He returned the next night, got the pulp renewed, and went overboard head first, as before.

He was satisfied.

A week after this, while Noakes was carousing with a sailor crowd on shore, at noonday, Capt. Ned's colored mate came along, and Noakes tried to pick a quarrel with him. The negro evaded the trap, and tried to get away. Noakes followed him up; the negro began to run; Noakes fired on him with a revolver and killed him. Half a dozen sea-captains witnessed the whole affair. Noakes retreated to the small after-cabin of his ship, with two other bullies, and gave out that death would be the portion of any man that intruded there. There was no attempt made to follow the villains; there was no disposition to do it, and indeed very little thought of such an enterprise. There were no courts and no officers; there was no government; the islands belonged to Peru, and Peru was far away; she had no official representative on the ground; and neither had any other nation.

However, Capt. Ned was not perplexing his head about such things. They concerned him not. He was boiling with rage and furious for justice. At nine o'clock at night he loaded a double-barreled gun with slugs, fished out a pair of handcuffs, got a ship's lantern, summoned his quartermaster, and went ashore. He said:

"Do you see that ship there at the dock?"

"Ay-ay, sir."

"It's the Venus."

"Ay-ay, sir."

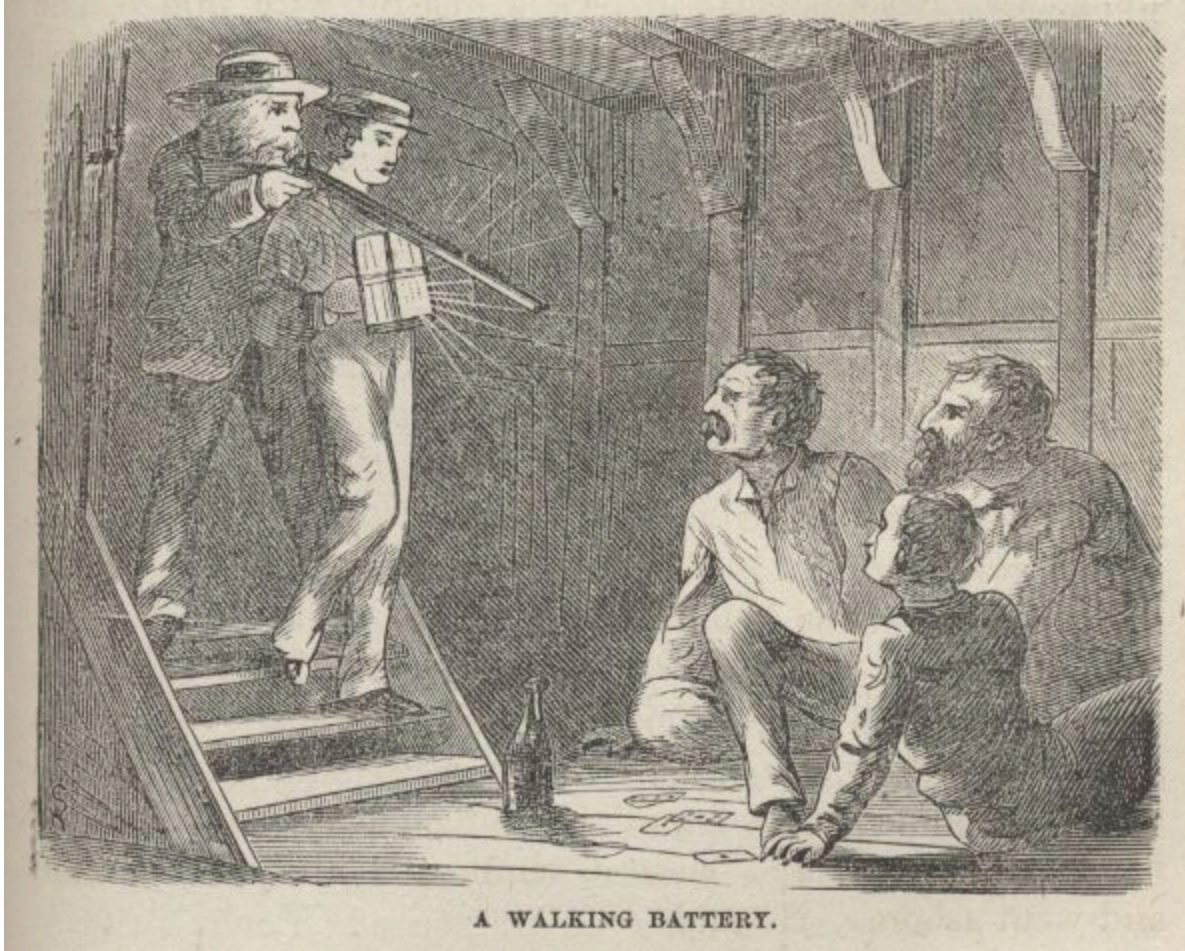
"You—you know me."

"Ay-ay, sir."

"Very well, then. Take the lantern. Carry it just under your chin. I'll walk behind you and rest this gun-barrel on your shoulder, p'inting forward—so. Keep your lantern well up so's I can see things ahead of you good. I'm going to march in on Noakes—and take him—and jug the other chaps. If you flinch—well, you know me."

"Ay-ay, sir."

In this order they filed aboard softly, arrived at Noakes's den, the quartermaster pushed the door open, and the lantern revealed the three desperadoes sitting on the floor. Capt. Ned said:



"I'm Ned Blakely. I've got you under fire. Don't you move without orders—any of you. You two kneel down in the corner; faces to the wall—now. Bill Noakes, put these handcuffs on; now come up close. Quartermaster, fasten 'em. All right. Don't stir, sir. Quartermaster, put the key in the outside of the door. Now, men, I'm going to lock you two in; and if you try to burst

through this door—well, you've heard of me. Bill Noakes, fall in ahead, and march. All set. Quartermaster, lock the door."

Noakes spent the night on board Blakely's ship, a prisoner under strict guard. Early in the morning Capt. Ned called in all the sea-captains in the harbor and invited them, with nautical ceremony, to be present on board his ship at nine o'clock to witness the hanging of Noakes at the yard-arm!

"What! The man has not been tried."

"Of course he hasn't. But didn't he kill the nigger?"

"Certainly he did; but you are not thinking of hanging him without a trial?"

"Trial! What do I want to try him for, if he killed the nigger?"

"Oh, Capt. Ned, this will never do. Think how it will sound."

"Sound be hanged! Didn't he kill the nigger?"

"Certainly, certainly, Capt. Ned,—nobody denies that,—but—"

"Then I'm going to hang him, that's all. Everybody I've talked to talks just the same way you do. Everybody says he killed the nigger, everybody knows he killed the nigger, and yet every lubber of you wants him tried for it. I don't understand such bloody foolishness as that. Tried! Mind you, I don't object to trying him, if it's got to be done to give satisfaction; and I'll be there, and chip in and help, too; but put it off till afternoon—put it off till afternoon, for I'll have my hands middling full till after the burying—"

"Why, what do you mean? Are you going to hang him any how—and try him afterward?"

"Didn't I say I was going to hang him? I never saw such people as you. What's the difference? You ask a favor, and then you ain't satisfied when you get it. Before or after's all one—you know how the trial will go. He killed the nigger. Say—I must be going. If your mate would like to come to the hanging, fetch him along. I like him."

There was a stir in the camp. The captains came in a body and pleaded with Capt. Ned not to do this rash thing. They promised that they would create a court composed of captains of the best character; they would empanel a jury; they would conduct everything in a way becoming the serious nature of the business in hand, and give the case an impartial hearing and the accused a fair trial. And they said it would be murder, and punishable by the American courts if he persisted and hung the accused on his ship. They pleaded hard. Capt. Ned said:

"Gentlemen, I'm not stubborn and I'm not unreasonable. I'm always willing to do just as near right as I can. How long will it take?"

"Probably only a little while."

"And can I take him up the shore and hang him as soon as you are done?"

"If he is proven guilty he shall be hanged without unnecessary delay."

"If he's proven guilty. Great Neptune, ain't he guilty? This beats my time. Why you all know he's guilty."

But at last they satisfied him that they were projecting nothing underhanded. Then he said:

"Well, all right. You go on and try him and I'll go down and overhaul his conscience and prepare him to go—like enough he needs it, and I don't want to send him off without a show for hereafter."

This was another obstacle. They finally convinced him that it was necessary to have the accused in court. Then they said they would send a guard to bring him.

"No, sir, I prefer to fetch him myself—he don't get out of my hands. Besides, I've got to go to the ship to get a rope, anyway."

The court assembled with due ceremony, empaneled a jury, and presently Capt. Ned entered, leading the prisoner with one hand and carrying a Bible and a rope in the other. He seated himself by the side of his captive and told the court to "up anchor and make sail." Then he turned a searching eye on the jury, and detected Noakes's friends, the two bullies.

He strode over and said to them confidentially:

"You're here to interfere, you see. Now you vote right, do you hear?—or else there'll be a double-barreled inquest here when this trial's off, and your remainders will go home in a couple of baskets."

The caution was not without fruit. The jury was a unit—the verdict. "Guilty."

Capt. Ned sprung to his feet and said:

"Come along—you're my meat now, my lad, anyway. Gentlemen you've done yourselves proud. I invite you all to come and see that I do it all straight. Follow me to the canyon, a mile above here."

The court informed him that a sheriff had been appointed to do the hanging, and—

Capt. Ned's patience was at an end. His wrath was boundless. The subject of a sheriff was judiciously dropped.

When the crowd arrived at the canyon, Capt. Ned climbed a tree and arranged the halter, then came down and noosed his man. He opened his Bible, and laid aside his hat. Selecting a chapter at random, he read it through, in a deep bass voice and with sincere solemnity. Then he said:

"Lad, you are about to go aloft and give an account of yourself; and the lighter a man's manifest is, as far as sin's concerned, the better for him. Make a clean breast, man, and carry a log with you that'll bear inspection. You killed the nigger?"



No reply. A long pause.

The captain read another chapter, pausing, from time to time, to impress the effect. Then he talked an earnest, persuasive sermon to him, and ended by repeating the question:

"Did you kill the nigger?"

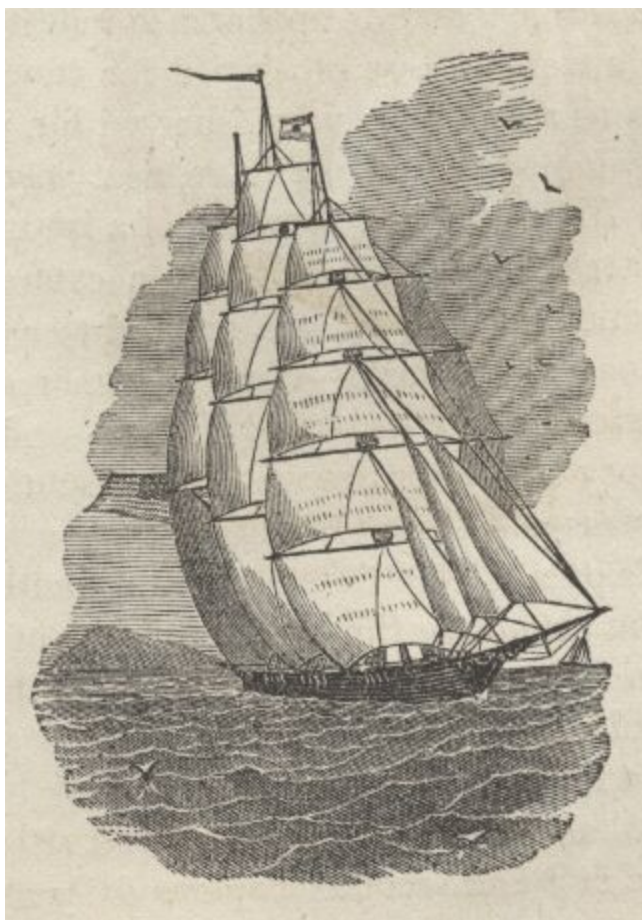
No reply—other than a malignant scowl. The captain now read the first and second chapters of Genesis, with deep feeling—paused a moment, closed the book reverently, and said with a perceptible savor of satisfaction:

"There. Four chapters. There's few that would have took the pains with you that I have."

Then he swung up the condemned, and made the rope fast; stood by and timed him half an hour with his watch, and then delivered the body to the court. A little after, as he stood contemplating the motionless figure, a doubt came into his face; evidently he felt a twinge of conscience—a misgiving—and he said with a sigh:

"Well, p'raps I ought to burnt him, maybe. But I was trying to do for the best."

When the history of this affair reached California (it was in the "early days") it made a deal of talk, but did not diminish the captain's popularity in any degree. It increased it, indeed. California had a population then that "inflicted" justice after a fashion that was simplicity and primitiveness itself, and could therefore admire appreciatively when the same fashion was followed elsewhere.



*** END OF THE PROJECT GUTENBERG EBOOK ROUGHING IT,
PART 5. ***

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